

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 02/25/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearings for Lines 13-14. Counsel are ordered to appear remotely via Zoom to attend the CMC. If the tentative rulings for lines 13 and 14 are uncontested or unopposed, no appearance is required and this CMC is continued to August 18, 2026 at 8:30 a.m. in Dept. 16.

2. 9:00 AM CASE NUMBER: C24-01926
CASE NAME: PETER HO VS. CITY OF CITRUS HEIGHTS
HEARING ON DEMURRER TO: HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is a demurrer by the City of Citrus Heights to Plaintiff's first amended complaint. For the reasons set forth, the demurrer is **sustained**, **without leave to amend**.

Background

In his operative first amended complaint ("FAC"), Plaintiff Peter Ho appears to allege a single cause of action for "wrongful and fraudulent home receivership." (FAC p. 1.) His FAC was filed after a demurrer by the City of Citrus Heights to the original complaint was sustained, with leave to amend.

Plaintiff summarizes his claim in the lawsuit as "to recover damages caused by a wrongful and fraudulent home receivership for building health and safety code (HSC) concerns caused by the defendant." (FAC p.1, ll. 24-26.) Plaintiff indeed reiterates the basis of his claim: "My home was unjustly and unfairly placed into a City code enforcement health and safety home receivership in April 2021. The case was unjustly and unfairly heard." (FAC p. 2, ll. 14-15.)

The Health & Safety Code receivership was imposed in April 2021 in a case before the Superior Court for the County of Sacramento, *City of Citrus Heights v. Peter Y. Ho*, Case No. 34-2021-00292266 ("Receivership Case") (see Def. RJN Exhs. 1-4). Plaintiff challenged the imposition of the Health & Safety Code receivership and the conduct of the City, the Court-appointed receiver, and others in a related action in the Superior Court for the County of Sacramento, *Peter Y. Ho v. City of Citrus Heights*, Case No. 34-2023-00335222 ("2023 Ho Action") (see Def. RJN Exhs. 5-11). The 2023 Ho Action was dismissed with prejudice after the Court sustained the City's demurrer to Ho's first amended complaint in that action without leave to amend. (Def. RJN Exh. 11.)

Plaintiff then initiated this lawsuit, reiterating his challenges to the Health & Safety Code receivership and events in the Receivership Case in a complaint filed on July 26, 2024. Plaintiff is appearing in pro per. Despite filings indicating Plaintiff was seeking counsel to represent him, no counsel has made an appearance for Plaintiff in the case. (See, e.g., Mtn. for Continuance filed 3/21/2025 p. 2 [referring to seeking counsel and finding financing for counsel], Opp to Dem. to FAC filed 1/8/2026 p. 18, ll. 7-8 [Plaintiff in process of retaining counsel, expected to have attorney week of January 12, 2026].)

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (See also Code Civ. Proc. § 452.) Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (See also *Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial

notice. (*Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) "[I]t is well established a trial court may take notice of an earlier judgment in deciding whether to sustain a demurrer on *res judicata* grounds." (*Kirkpatrick v. City of Oceanside* (1991) 232 Cal.App.3d 267, 281 [citing *Carroll v. Puritan Leasing Co.* (1978) 77 Cal.App.3d 481, 486].) "The court may sustain a demurrer on claim preclusion grounds '[i]f all of the facts necessary to show that the action is barred are within the complaint or subject to judicial notice' [Citation omitted.]" (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1190-1191 [quoting *Carroll v. Puritan Leasing Co.*, *supra*, 77 Cal.App.3d at 485].)

"The plaintiff bears the burden of establishing that the facts pleaded establish every element of the cause of action. [Citation omitted.] Plaintiff must overcome each legal ground upon which the trial court sustained the demurrer. [Citation omitted.] Finally, plaintiff must prove there is a reasonable possibility that he can amend his pleading to overcome any legal defects. [Citation omitted.]" (*Gillies v. JPMorgan Chase Bank, N.A.* (2017) 7 Cal.App.5th 907, 912.)

Defendant's Request for Judicial Notice

The City asks the Court to take judicial notice of Court filings and orders of the Sacramento County Superior Court in the Receivership Case, *City of Citrus Heights v. Peter Y. Ho*, Case No. 34-2021-00292266 (Def. RJN Exhs. 1-4), and in the 2023 Ho Action, *Peter Y. Ho v. City of Citrus Heights*, Case No. 34-2023-00335222 (Def. RJN Exhs. 5-11). The unopposed request is **granted**, subject to the applicable limitations on judicial notice under the case law. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].) The Court notes that Ho filed a notice of related cases on February 28, 2025 which identifies the Receivership Case and the 2023 Ho Action as related cases.

Plaintiff's Late Opposition, Exhibits to the Demurrer Opposition, and Supplemental Opposition filed February 13, 2026

All papers in opposition to a motion are required to be filed and served at least nine court days prior to the date of the hearing. (Code Civ. Proc. § 1005(b).) The original hearing date on the demurrer was January 21, 2026. On January 8, 2026, Plaintiff filed a late opposition to the demurrer for the January 21, 2026 hearing, as the opposition was filed eight court days prior to January 21, 2026, in light of the January 19, 2026 court holiday. Further, the proof of service of the opposition Plaintiff filed on January 20, 2026 shows it was served by mail two days later on January 10, 2026, rather than on the date of filing and by overnight mail, personal service, or email. (Code Civ. Proc. § 1005(b).) The opposition also arguably exceeds the 15-page limit, though the last few pages describe the content of exhibits attached to the opposition, and it does not contain the required tables. (Cal. R. Ct., Rule 3.1113(d) ["no opening or responding memorandum may exceed 15 pages"], and Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].) Despite the deficiencies, the Court will consider the original opposition as the City has not objected to the opposition on any of these procedural grounds.

Plaintiff has attached unauthenticated exhibits to the January 8, 2026 opposition to the demurrer. Even if authenticated, the Court cannot consider evidence in ruling on a demurrer except matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

The Court continued the January 21, 2026 hearing on the demurrer for the City to file and serve the

request for judicial notice referred to in its demurrer. On February 13, 2026, seven court days prior to the continued hearing, Plaintiff filed a "supplemental opposition" to the demurrer. There is no proof of service on file for the supplemental opposition as of the date this tentative ruling was prepared. The February 13, 2026 supplemental opposition is untimely, and the Court does not have evidence the pleading was served on the City. The Court will not consider it. Plaintiff is not excused from compliance with applicable law, procedures, and rules merely because he is a self-represented litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.)

Note on the City's Papers

In its opening memorandum and reply, the City refers to an appeal to the Court of Appeal and a petition to the California Supreme Court, apparently in connection with one of the prior actions between the City and Plaintiff. (See, e.g., MPA ISO Dem. p. 8, ll. 19-20, ll. 24-25; Reply p. 2, ll. 4-7.) These arguments stated in general terms are unsupported by documents before the Court, including the City's request for judicial notice, which does not include any appellate filings, appellate orders, or other appellate rulings. (Def. RJN Exhs. 1-11.) The Court therefore does not consider those arguments in this ruling.

The City also includes evidence with the Wakefield declaration beyond evidence related to the parties' required meet and confer prior to the filing of the demurrer, including the Receiver's Second Report in the Receivership Action. (Wakefield Decl. Exh. 5.) The Court does not consider that evidence in ruling on the demurrer to the extent it is offered for more than the fact the report was filed in the receivership and that the Receiver made statements in the report, the truth or interpretation of which may be reasonably disputable. (*StorMedia, supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity, supra*, 148 Cal.App.4th at 113-115.)

Meet and Confer

The Court has before it a declaration of counsel Wakefield under penalty of perjury regarding his multiple attempts to meet and confer with Plaintiff prior to filing the demurrer. (Wakefield Decl. ¶¶ 4, 5.) The opposition contests that there was an attempt to meet and confer but without any evidence to support the contest. (Opp. p. 14, l. 22 – p. 15, l. 5.) The Court finds the unrefuted evidence of the City's meet and confer efforts that were not responded to is sufficient to satisfy Code of Civil Procedure section 430.41(a). The Court also notes that it cannot sustain or overrule a demurrer based on the inadequacy of the meet and confer in any event. (Code Civ. Proc. § 430.41(a)(4).)

Analysis

The City asserts a number of grounds for why the FAC does not allege facts sufficient to state a cause of action against it. The City contends that the claims are barred by *res judicata*, by Plaintiff's failure to file a timely government claim or seek relief to file a late government claim under the Government Claims Act, and by multiple government immunity statutes. The City also contends that Plaintiff has not alleged any statutory basis for the claims against the City in the FAC.

A. Plaintiff's Allegations

Parsing through the 39-page FAC, Plaintiff's claims are grounded in what Plaintiff contends was a wrongful imposition of a receivership over his former residence under Health & Safety Code section

Code sections 17980.1 through 17980.8 based on allegedly defective service of the petition for imposition of the receivership, and later alleged improper actions by the Receiver in conducting the receivership, such as alleged removal of the bathrooms, reconfiguring the kitchen, other remodeling and staging the home for sale. (FAC p. 3, l. 20 – p. 6, l. 8 [service, notice, receivership imposed too fast]; FAC p. 6, l. 10 – p. 7, l. 18 [receivership excess work, fees]; FAC p. 8, l. 5 – p. 9, l. 17 [service, notice]; FAC p. 9, l. 25 – p. 10, l. 8 [improper receivership, excessive fees]; FAC p. 13, l. 9 – p. 14, l. 13 [service]; FAC p. 19, l. 6 – 16 [service]; FAC p. 19, ll. 18-22 [receiver excessive work]; FAC p. 24, l. 7 – p. 33, l. 8 [service, notice], FAC p. 34, l. 24 – p. 35, l. 6 [service], FAC p. 35, ll. 16-17 [excessive fees], FAC p. 36, ll. 1-11 [service, notice], FAC p. 37, l. 21 – p. 38, l. 7 [service, notice].)

The receivership was imposed based on a petition filed by the City on January 12, 2021. (Def. RJN Exhs. 1-3.) A receiver was appointed by the Court over the property by order filed April 15, 2021. (Def. RJN Exh. 4.) Plaintiff alleges the home was listed for sale beginning in September 2022 to December 2022, and he alleges the Receiver's fees and expenses had reached \$306,000 as of December 2022, which is his primary claim for damages in this action. (FAC p. 6, ll. 13- p. 7, l. 17 and prayer p. 22, l. 4.) He alleges the sale of the property was authorized in March 2023. (FAC p. 16, ll. 19-20.)

Plaintiff alleges that he was not properly served with the papers initiating the receivership, that the process server's affidavit was untruthful in the service declaration, that the fact the process server was paid approximately \$1,100 for multiple (four) service attempts indicates "bribery" as the fee was excessive, and that the City's attorneys relied on the affidavit of service that Plaintiff contends was false. (See, e.g., FAC p. 13, l. 9 – p. 14, l. 13; FAC p. 24, l. 7 – p. 33, l. 8.) He alleges his answer deadline was "backdated," and he was not allowed to be heard, but it is clear he appeared at the April 14, 2021 hearing on the receivership and contested the petition, the hearing, and the alleged improper service and inadequate notice based on his allegations. (See, e.g., FAC p. 13, l. 9 – p. 14, l. 13; FAC p. 24, l. 7 – p. 33, l. 8.) (See also Def. RJN Exhs. 2, 3.)

He also alleges facts indicating he continued to appear and contest the conduct of the receivership during the two-year period between its imposition in April 2021 and Court approval of the sale of the property in March 2023. (FAC p. 16, ll. 19-20; FAC p. 23, ll. 4-7.) Plaintiff concedes that his loss commenced when the receivership commenced in April 2021. (FAC p. 17, ll. 11-14.) But Plaintiff also alleges that he "filed and communicated" his objections and contentions to the Court regarding the matters of which he complains, and the Court rejected his claims. (FAC p. 23, ll. 4-7.) He essentially alleges that he was not fairly treated because the Court rejected his arguments. (*Id.*)

Plaintiff filed a complaint against the City initiating the Ho 2023 Action on February 23, 2023 based on the alleged wrongful Health & Safety Code receivership and misconduct of the City, its attorneys, and the Court-appointed receiver in the course of the 2021 Receivership Action. (Def. RJN Exh. 5.) Plaintiff alleges that prior to filing the complaint in the 2023 Ho Action, he appeared before the "City leaders" at a City council meeting in January 2023 to air his grievances about the receivership and alleged misconduct of "city operators" and his "inability to have the judge/court recognize the truth and illegal behavior." (FAC p. 19, ll. 1-4.) Plaintiff filed a first amended complaint in the 2023 Ho Action. (Def. RJN Exh. 8.)

The FAC in this case reiterates the same or substantially similar facts as the basis for Plaintiff's claims against the City as those alleged by Plaintiff in the 2023 Ho Action. (*Compare* Def. RJN Exhs. 5 and 8 to

FAC.) The Court sustained a demurrer by the City without leave to amend, dismissed the 2023 Ho Action, and granted judgment for the City on February 1, 2024. (Def. RJN Exh. 11.) He alleges that there was unfairness in the 2023 Ho Action because he contends that the City's demurrer to his complaint and/or first amended complaint in that action were untimely. (FAC p. 23, ll. 21-23; FAC p. 33, l. 11 – p. 34, l. 5; FAC p. 36, l. 16 – p. 37, l. 19.)

Plaintiff's FAC is replete with references to fraud, corruption, bribery, perjury, illegality, and similar terms which are factual or legal contentions or conclusions that are disregarded in ruling on a demurrer under the legal standards cited above. In response to the Court's prior order allowing Plaintiff leave to attempt to amend, Plaintiff has added certain legal arguments and citations to portions of the Penal Code to his FAC. The essential facts on which Plaintiff's claim for wrongful receivership rests, however, are the substantially the same facts raised by Plaintiff in disputing the receivership in the Receivership Action, in Plaintiff's 2023 Ho Action, and in the original complaint in this case. (*Compare* Complaint and FAC to Def. RJN Exhs. 5, 8.)

B. Res Judicata and Failure to Allege Timely Government Claim Presentation

The Court may take judicial notice of prior orders in another action in ruling on a demurrer to determine if the claims asserted in the current litigation are barred by *res judicata* or collateral estoppel. (*Shine v. Williams Sonoma Inc.* (2018) 23 Cal.App.5th 1070, 1076-1077.) In taking judicial notice of the content of the prior orders in the Receivership Case and the 2023 Ho Action, the Court does not accept that the findings are necessarily correct, but rather that the findings were made and the issues or claims therefore determined in the prior final orders such that the orders bar relitigation of issues or claims decided in those prior actions. (*Steed v. Department of Consumer Affairs* (2012) 204 Cal.App.4th 112, 120 ["Judicial notice is properly taken of the existence of a factual finding in another proceeding, but not of the truth of that finding. [Citations omitted.] 'A court may take judicial notice of [another] court's action but may not use it to prove the truth of the facts found and recited. [Citations.]' [Citations omitted, italics in original.]"]; *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 148 ["[E]ven though a factual finding in a prior judicial decision may not establish the truth of that fact for purposes of judicial notice, the finding itself may be a proper subject of judicial notice if it has a *res judicata* or collateral estoppel effect in a subsequent action."].)

The City's *res judicata* argument is that the order sustaining the demurrer without leave to amend and dismissing the Ho 2023 Action with prejudice operates as a bar to relitigation of the claims alleged in the FAC in this case. Code of Civil Procedure section 581(f)(1) allows a court to dismiss an action with prejudice when a demurrer is sustained without leave to amend, as the Court did in the 2023 Ho Action. (RJN Exh. 11.)

The *res judicata* effect of an order with respect to an order sustaining a demurrer without leave to amend and dismissal of an action depends on the grounds on which the demurrer was sustained. (*See, e.g., Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416, 1427-1428; *Boyd v. Freeman* (2017) 18 Cal.App.5th 847, 855.) The order sustaining the demurrer in the 2023 Ho Action was made on the ground that Ho did not allege he timely filed a government claim to challenge the imposition of the receivership in April 2021, that the deadline for filing such a claim had passed before he filed the government claim and by the time he filed the 2023 Ho Action, that Ho did not allege he timely applied to the City to accept a late claim, and that if the application was denied, that

Ho timely moved for relief from the government claim filing requirement. (Def. RJN Exh. 11.)

1. Plaintiff's Government Claim Allegations

Plaintiff in the FAC attempts to address his government claim presentation at pages 16-18 of the FAC. He alleges that he presented the government claim on August 7, 2023, but he admits the receivership commenced in April 2021 and his loss "started" at that time. (FAC pp. 16-18.) Plaintiff himself characterizes his claim as one for "wrongful fraudulent receivership" over his home. (FAC p. 1.) His allegations repeatedly refer to an allegedly false service affidavit by the process server and improper or insufficient notice and opportunity to oppose the receivership, claims he also admits he raised and litigated in the Receivership Action as cited above. (*See also* Def. RJN Exhs. 2, 3.)

"Accrual of the cause of action for purposes of the government claims statute is the date of accrual that would pertain under the statute of limitations applicable to a dispute between private litigants. [Citation omitted.]" (*Shirk v. Vista Unified School Dist.* (2007) 42 Cal. 4th 201, 208-209, superseded by statute on other grounds, citing among other authorities Government Code section 901.) Under Government Code section 901, "the date of the accrual of a cause of action to which a claim relates is the date upon which the cause of action would be deemed to have accrued within the meaning of the statute of limitations which would be applicable thereto if there were no requirement that a claim be presented to and be acted upon by the public entity before an action could be commenced thereon."

A cause of action generally accrues when it is "complete with all its elements." (*E-Fab, Inc. v. Accountants Inc. Services* (2007) 153 Cal.App.4th 1308, 1317 [quoting *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806].) The City's petition to impose the Health & Safety Code receivership was filed in January 2021. Plaintiff's FAC repeatedly asserts he was injured and his rights denied when the receivership was imposed in April 2021, which is when the allegedly "wrongful" receivership was instituted, when the Receiver was appointed, and the Receiver was authorized to take exclusive possession and control of the property. (RJN Exhs. 1-4.) The Court's tentative ruling and minute order on the City's petition in the Receivership Action shows that in March 2021, Plaintiff filed multiple responses to the City's petition contesting the City's right to proceed and disputing service, among other things. (Def. RJN Exhs. 2, 3.) Plaintiff's government claim included in the records subject to the request for judicial notice, as cited by the City, identifies his claim as accruing in April 2021, the time the receivership was imposed, as well as May 2021 when Plaintiff alleges he was barred from his home. (Def. RJN Exh. 8 and govt. claim attached thereto.) Plaintiff alleges that he did not file his government claim until August 7, 2023 (FAC p. 18, ll. 13-14.), which was well over two years later.

Plaintiff alleges that he "worked for 2 years from April 2021 thru March 2023 to stop and have this unjust receivership corrected" (FAC p. 16, ll. 19-20 [emphasis added]), an admission that Plaintiff both presented his contests to the receivership in the Receivership Action during that period and had an opportunity to be heard during that time, and that he was aware he had suffered damage by the alleged wrongful conduct of the City and others that caused him damage as of April 2021 and thereafter as the receivership continued. These and other allegations indicate the facts on which his claim for wrongful receivership claim are grounded arose and the elements of his wrongful receivership claim were complete as of April or May 2021, when he alleges he was not properly served with the petition for the Health & Safety Code receivership, that the basis for imposing the receivership in or about April 2021 was improper, and that he was barred from his home in May 2021

and thereafter, when the Receiver incurred fees and expenses Plaintiff alleges were excessive. (See, e.g., FAC p. 13, l. 9 – p. 14, l. 13 and other citations above.) These allegations are included in substance in his original complaint and first amended complaint in the 2023 Ho Action. (Def. RJN Exhs. 5 and 8.)

2. The Effect of the 2023 Ho Action Order Sustaining the Demurrer and Granting Judgment

The City argues the order sustaining the demurrer and dismissing the 2023 Ho Action went to the merits of Plaintiff's claim because timely presentation of a government claim or of an application allowing a late-filed claim is an essential element of a cause of action against a public entity. "Timely claim presentation is not merely a procedural requirement, but is, as this court long ago concluded, ' [] a condition precedent to plaintiff's maintaining an action against defendant [] ' [citations, internal quotation marks omitted], and thus an element of the plaintiff's cause of action. [Citation omitted.] Complaints that do not allege facts demonstrating either that a claim was timely presented or that compliance with the claims statute is excused are subject to a general demurrer for not stating facts sufficient to constitute a cause of action. [Citation omitted.]" (*Shirk, supra*, 42 Cal. 4th at 209 [citing *State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1240, quoting *Williams v. Horvath* (1976) 16 Cal.3d 834, 842].)

These authorities support that claim presentation, either on a timely basis or after application for allowance of a late-filed claim, is an element going to the merits of the claim made in the complaint and first amended complaint in the 2023 Ho Action, and that the order sustaining the demurrer without leave to amend and granting judgment for the City therefore went to the merits of Plaintiff's claim for *res judicata* purposes. As the City highlights, the Sacramento Court's order recites that the City raised the government claim issue in the demurrer to the first amended complaint, that Plaintiff had an opportunity to respond to the City's demurrer on the claims presentation issue to demonstrate the timeliness of his government claim or application to file a late claim, that Plaintiff failed to oppose the City's demurrer on that ground, and that the Court found "Plaintiff's failure to oppose this specific ground as a concession on the merits." (Def. RJN Exh. 11 [citing *Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728 fn. 4].) The Court takes judicial notice that the Court made that ruling, dismissed the claim against the City, and granted judgment for the City in the 2023 Ho Action for purposes of *res judicata*. (*Shine, supra*, 23 Cal.App.5th at 1076-1077; *Kilroy, supra*, 119 Cal.App.4th at 148.)

Further, under the collateral estoppel doctrine subsumed in *res judicata*, the order sustaining the demurrer without leave to amend and judgment in the 2023 Ho Action bars Plaintiff from relitigating the same issue in this action, specifically, that his August 2023 government claim, the only government claim he alleges he filed, was timely. (*DKN Holdings, LLC v. Faeber* (2015) 61 Cal.4th 813, 824 [explaining claim preclusion and issue preclusion under the umbrella doctrine of *res judicata*, stating " 'Claim preclusion' prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them." [Citation omitted.] Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. [Citations omitted.] If claim preclusion is established, it operates to bar relitigation of the claim altogether. [¶] *Issue preclusion* prohibits the relitigation of

issues argued and decided in a previous case, even if the second suit raises different causes of action. [Citation omitted.] Under issue preclusion, the prior judgment conclusively resolves an issue actually litigated and determined in the first action [Citation omitted.] There is a limit to the reach of issue preclusion, however. In accordance with due process, it can be asserted only against a party to the first lawsuit, or one in privity with a party. [Citation omitted.]" (Italics in original.).)

The FAC in the 2023 Ho Action identified the same three groups of actors who allegedly committed wrongs in connection with the Receivership Action as the three groups identified in the FAC in this case. (Compare Def. RJN Exh. 10 [Dem. and supporting pleadings Exh. 3, Ho's FAC in the 2023 Ho Action, p. 2, ll. 17-24] to FAC p. 3, ll. 1-3.) The allegations of both are identical and explicitly allege wrongdoing in the "Receivership Action." The Court's subsequent judgment in favor of the City and dismissal of the 2023 Ho Action operates as *res judicata* barred Plaintiff's attempt to assert those same claims of liability by the City in this action.

Plaintiff is attempting to reassert substantially the same claims against the City in this action that were previously decided on the merits by the Court's order and judgment (Def. RJN Exh. 11) in the 2023 Ho Action. Plaintiff was clearly a party to the prior 2023 Ho Action. The Court's determination of the issue of the timely government claim litigated on the merits on the City's demurrer and entry of final judgment in the 2023 Ho Action are binding on Plaintiff, precluding relitigation of his claims and that specific issue in this case. The doctrine of *res judicata* therefore bars the re-litigation of those claims against the City in this action.

3. Fraud Exception to Res Judicata Doctrine

Plaintiff alleges that "extrinsic fraud" warrants the Court not applying *res judicata* to bar his claims against the City. (FAC pp. 14-15.) Plaintiff cites an 1878 United States Supreme Court decision, *United States v. Throckmorton* (1878) 98 U.S. 61 which affirmed an order sustaining a demurrer to a claim concerning a land grant. The complaining party asserted that there was fraud in obtaining confirmation of the land grant claim before the board of commissioners of private lands in California and before the federal district court which affirmed the decree of the commissioners. In rejecting the fraud claim as a basis for collateral attack on the prior determinations, the Court found that there had been time for any proof of fraud to be presented in the proceedings before the commissioners and the district court, including subsequent appeals. (*Id.* at 62.) The Court further rejected that the fraud exception to *res judicata* applied because the exception applies when it is shown that through fraud or deception by the other side, the party had been kept away from the Court or never had knowledge of the suit such that there had never been a "real contest" or trial. (*Id.* at 65-66.)

The extrinsic fraud exception is equally inapplicable here. The record shows, and Plaintiff concedes, that he made repeated filings and communicated his objections to service, notice, and the merits of imposing the receivership in the Receivership Action (Def. RJN Exhs. 2, 3 and portions of FAC previously cited; Def. RJN Exh. 10 [in particular, RJN ¶¶ 2-4 in support of City's demurrer to first amended complaint in 2023 HO Action), and that Plaintiff then asserted a collateral challenge to the imposition of the receivership in the 2023 Ho Action, which was dismissed and judgment entered for the City. (Def. RJN Exhs. 5, 8, and 11.)

The other decisions cited by Plaintiff in the FAC are inapposite and/or unpersuasive. (*Aghaeepour v.*

N. Leasing Sys. (S.D.N.Y. 2019) 378 F. Supp. 3d 254, 265-270 [nonbinding federal district court decision applying New York law and addressing factually and legally inapposite case involving massive fraudulent enterprise with litigation scheme based on forged documents, stating "Plaintiffs, through this action, do not seek to overturn the underlying default judgments. Whether those are overturned will depend on the merits of the [Attorney General]'s aggregated action. Further, while the underlying actions refer to the fraudulent leases, there is no elaboration nor adjudication regarding the alleged scheme Defendants orchestrated that mechanistically produced default judgments," another ground why *res judicata* did not apply to the claims alleged in the action before the district court]; *Wells Fargo Bank, N.A. v. Weinberg* (2014) 227 Cal.App.4th 1, 6-8 [factually and legally inapposite, holding *res judicata* and collateral estoppel did not apply to bar amendment of judgment to add party as additional judgment debtor under alter ego theory, where issue of new judgment debtor's alter ego status arose after the complaint was filed, plaintiff had not raised or litigated alter ego claim, and no and alter ego claim had been determined, stating "Amending judgments under Code of Civil Procedure section 187 is an equitable procedure. [Citation omitted.] Because Wells Fargo is not seeking new relief but to enforce its judgment, *res judicata* does not apply."].)

In *Hudson v. Foster* (2021) 68 Cal. App. 5th 640 cited by the City, the Court explained extrinsic fraud in the context of a probate proceeding in which a conservatee appealed an order denying the conservatee's motion to vacate the approval of the final account of the fiduciary conservator because the conservatee contended the order was obtained through extrinsic fraud. (*Id.* at 660-661.) "Courts require a showing of extrinsic fraud or mistake in order to balance the public policy in favor of the finality of judgments with the policy in favor of providing litigants a fair opportunity to present a case. [Citation omitted.] . . . [¶] Fraud is extrinsic when a party is prevented from fully participating in the proceeding or deprived of the opportunity to present a claim to the court by the fraudulent conduct of another party, as opposed to the moving party's own negligence. [Citations omitted.] 'The clearest examples of extrinsic fraud are cases in which the aggrieved party is kept in ignorance of the proceeding or is in some other way induced not to appear. [Citation.]' [Citation omitted.] Other examples include 'concealment of the existence of a community property asset, failure to give notice of the action to the other party, and convincing the other party not to obtain counsel because the matter will not proceed (and then it does proceed). [Citation omitted.]' [Citation omitted.]" (*Id.* at 664.)

In contrast, "Fraud is generally considered intrinsic when a party had notice of the action and an opportunity to present a case, but unreasonably neglected to protect themselves from fraud or mistake involving the merits of the proceeding. [Citation omitted.]" (*Id.*) The Court continued, "[E]quitable relief will be denied where it is sought to relitigate an issue involved in the former proceeding on the ground that allegations or proof of either party was fraudulent or based on mistake, but such relief may be granted if the party seeking it was precluded by fraud or the mistake of the other party from participating in the proceeding or from fully presenting his case. [Citations omitted.]" (*Id.* at 665 [emphasis added].) (*See also Home Ins. Co. v. Zurich Ins. Co.* (2002) 96 Cal. App. 4th 17, 27 [discussing extrinsic and intrinsic fraud in similar terms, and stating, "Generally, the introduction of perjured testimony or false documents, or the concealment or suppression of material evidence is deemed intrinsic fraud. [Citation omitted.]"].)

Plaintiff's allegations of fraud, perjury, or "bribery" based on alleged excessive charges for the process

server, or information presented in affidavits or other filings in the Receivership Action which Plaintiff disputed as untruthful, all relate to matters Plaintiff either raised and litigated or matters that he could have raised and litigated in the Receivership Action, as shown by the allegations of the FAC summarized above (*see also* Def. RJN Exhs. 1-4), and in the 2023 Ho Action (RJN Exhs. 5, 8, 10 [including RJN ¶¶ 2-4], 11) if Plaintiff had filed a timely government claim. Neither the FAC factual allegations nor the records of the Receivership Action subject to judicial notice show that Plaintiff was not apprised of the existence of the petition, the proposed receivership, and the events of the receivership, or that Plaintiff did not have an opportunity to present his disputes in the Sacramento Superior Court or by appeal of any adverse ruling, including any disputes regarding perjury, fraud, bribery or other illegalities allegedly occurring during the Receivership Action. There are no allegations or matters subject to judicial notice that indicate Plaintiff's 2023 Ho Action was dismissed because of any extrinsic fraud rather than because of Plaintiff's own negligence in not timely filing a government claim, a judgment which Plaintiff also could have sought relief from by appeal but which appears to be final. The allegations of the FAC and matters subject to judicial notice show that Plaintiff is seeking to relitigate the claims he made in the Receivership Action and 2023 Ho Action by collateral attack to try to obtain a different result, which is not a basis for application of the extrinsic fraud exception.

The City's demurrer to the FAC is therefore **sustained** on these grounds, **without leave to amend**.

C. Court Does Not Need to Reach the City's Immunity Arguments

The City raises arguments in the demurrer regarding multiple grounds for the City's immunity from liability for whatever acts or omissions Plaintiff alleges code enforcement, the law firm, or the Receiver allegedly committed. The Court does not need to reach those additional grounds for sustaining the demurrer.

D. No Leave to Amend

Plaintiff has been given the opportunity to try to amend his complaint to state claims against the City. This opportunity is in addition to the opportunities Plaintiff had to contest the receivership and alleged improprieties of the code enforcement officials, the law firm, and the Receiver in the Receivership Action, and again in the 2023 Ho Action. The Court rejects Plaintiff's contentions that the extrinsic fraud exception applies for the reasons stated. Plaintiff has not demonstrated that he has the ability to amend the FAC to allege additional facts to state a cause of action against the City in light of the facts which show his claims are barred by *res judicata* for the reasons stated.

3. 9:00 AM CASE NUMBER: C23-00279
CASE NAME: ATCHISON VILLAGE VS. MANDEL
***HEARING ON MOTION IN RE: ORDERS SETTING ASIDE DISMISSAL AND AMENDING COURT ORDER**
OF 5/21/25 IMPOSING SANCTIONS
FILED BY: ATCHISON VILLAGE MUTUAL HOMES CORPORATION
TENTATIVE RULING:

Plaintiff Atchison Village Mutual Homes Corporation's "Motion for Orders: (1) Setting Aside Plaintiff's Dismissal of this Action (C.C.P. § 473) and (2) Amending Court Order of 05/21/25 Imposing Discovery Sanctions" is **denied**.

Background

Plaintiff Atchison Village Mutual Homes Corporation is a 450-unit housing complex in Richmond, California. The corporation is cooperatively owned and managed by its members for the purpose of providing housing on a nonprofit basis.

Atchison retained attorney Andrew V. Gabriel to prosecute a claim against an AVMHC resident, Defendant Phyllis Mandel, alleging that her negligence caused water damage to her unit and to a neighboring unit. This lawsuit was filed by Atchison against Ms. Mandel on February 7, 2023. Ms. Mandel answered on April 4, 2023.

On January 26, 2024, Ms. Mandel served four sets of written discovery on Atchison, including form and specially prepared interrogatories, requests for admission, and requests for production. Mr. Gabriel asked Atchison for the information and documents needed to answer the discovery and Atchison provided the requested information and documents. On April 12, 2024, Attorney Gabriel served unverified and untimely responses to the discovery requests, thereby waiving objections to the discovery.

On February 14, 2025, Ms. Mandel served four motions to compel further discovery responses and for sanctions against Attorney Gabriel and Atchison, jointly and severally. Attorney Gabriel purportedly did not inform Atchison that Ms. Mandel had filed the motions. Attorney Gabriel did not file any opposition to the motions on his client's behalf.

The discovery motions were heard on May 21, 2025. The Court's tentative ruling awarded over \$30,000 in sanctions against Atchison and Attorney Gabriel, jointly and severally. Though Atchison had not filed an opposition, Attorney Gabriel appeared at the hearing. Following his argument, the Court amended the tentative ruling to award sanctions only against Atchison. The discovery motion hearing was not reported. However, Atchison claims that the only logical explanation for the change in the tentative ruling was that counsel appeared at the hearing and blamed Atchison for his own failures.

On June 4, 2025, the Court entered its order compelling further discovery responses and the payment of sanctions no later than June 13, 2025. Instead of complying with the order, on June 6, Atchison filed a request for dismissal of this action without prejudice. Attorney Gabriel stated in an email to defense counsel "[w]e intend to dismiss the action without prejudice, rendering further discovery moot at this

point.”

On October 6, 2025, Defendant filed her motion seeking \$94,218 in attorney fees as the prevailing party under CCP section 1032 and section 15 of the Atchison Mutual Ownership Contract. Atchison claims that Attorney Gabriel did not tell the Board about the pending attorney fee motion, and a Board member instead discovered the motion by reviewing the docket.

On October 28, 2025, Atchison filed this motion for discretionary relief under CCP section 473(b), requesting two orders: (1) an order setting aside the dismissal; and (2) an order amending the discovery orders to reflect that Attorney Gabriel is solely responsible for the sanctions (which Defendant has now collected from Atchison). Atchison claims that Attorney Gabriel lacked authority to dismiss the case if doing so would expose it to more than a *de minimis* amount of attorney fees and/or costs. Atchison also argues that discovery sanctions should be imposed exclusively on Attorney Gabriel for errors that had nothing to do with Atchison.

Analysis

Relief from Dismissal

A court may set aside any “judgment, dismissal, order, or other proceeding,” including a voluntary dismissal, that was entered due to mistake, inadvertence, surprise, or excusable neglect. (Code of Civil Procedure (CCP) § 473, subd. (b); *Zamora v. Clayborn Group, Inc.* (2002) 28 Cal.4th 249, 254-255 [noting the statutory language does not limit discretionary relief to “involuntary judgments or dismissals”]; *Jackson v. Kaiser Found. Hosps., Inc.* (2019) 32 Cal.App.5th 166, 173-177.) “Application for this relief shall . . . be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (CCP § 473, subd. (b).)

However, section 473, subdivision (b)’s discretionary provision applies “to cases involving attorney mistake only when the mistake is excusable.” (See *Jackson, supra*, 32 Cal.App.5th at 174 [citing *Zamora, supra*, 28 Cal.4th at 258].) “[A]ttorney conduct falling below the professional standard of care is not excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (*Id.*, at p. 174.)

Here, Atchison Board Member Kevin Cronin states in his declaration that Attorney Gabriel did not oppose the discovery motions on Atchison’s behalf, did not consult with Atchison’s Board about whether to oppose the motions, and did not share the Court’s tentative ruling imposing discovery sanctions. Although the tentative ruling imposed sanctions jointly against Atchison and counsel, the final order imposed sanctions only against Atchison after the hearing, and Mr. Cronin believes this change resulted from Attorney Gabriel attributing responsibility for the discovery failures to Atchison. (Cronin Decl., ¶¶ 4-15.)

Mr. Cronin states that before the hearing on the discovery motions, Atchison’s Board had authorized Attorney Gabriel to pursue settlement or, if necessary, a dismissal in exchange for a mutual waiver of costs/fees. On May 20, 2025, Attorney Gabriel advised that Ms. Mandel demanded \$75,000 to settle the case, and he recommended dismissing the case without prejudice, stating that Atchison would owe only modest costs and no attorney fees. Mr. Cronin says the Board authorized Attorney Gabriel to dismiss the case in reliance on that advice. Had the Board been aware of the sanctions award or potential fee exposure, it would not have authorized the dismissal. (Cronin Decl., ¶¶ 16-20.)

Atchison claims its misunderstanding was based on Attorney Gabriel's error in that counsel "had assured the Board that the dismissal would not expose it to a risk of having to pay Ms. Mandel's attorney's fees" and "did not tell the Board that the unilateral dismissal would leave it responsible for over \$30,000 in discovery sanctions." (Mot., p. 5:13-16.)

"[M]onetary [discovery] sanction orders are enforceable through the execution of judgment laws. [Citation.] These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction." (*Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615; see also, *Jones v. Otero* (1984) 156 Cal.App.3d 754, 759.) Therefore, the sanctions order was automatically enforceable when issued. The dismissal may have eliminated the need to serve responses to the discovery, but it did not eliminate the requirement to pay sanctions. The dismissal also triggered Ms. Mandel's right to claim attorney fees as the prevailing party on Atchison's cause of action for negligence. (As the attorney fee order notes, Atchison's own complaint had asserted that such fees were available on that claim.)

The Court has reviewed Atchison's authorities cited for the proposition that the dismissal was unauthorized and therefore void but finds them inapposite. In *Romadka v. Hoge* (1991) 232 Cal.App.3d 1231 for example, the plaintiff obtained a default judgment against the defendant but failed to timely serve it, subjecting the case to mandatory dismissal without prejudice. (*Romadka, supra*, 232 Cal.App.3d at p. 1234.) Within the period of limitations, the plaintiffs filed a new action and authorized their attorney to dismiss the original action without prejudice. (*Ibid.*) The plaintiffs' counsel completed the request for dismissal form but mistakenly checked the "with prejudice" box. (*Ibid.*) Realizing the error, the defendant raised a defense of res judicata in the second case. (*Ibid.*) The plaintiffs then moved to vacate their dismissal, and the trial court denied their motion. (*Ibid.*) Plaintiffs appealed, claiming their dismissal was void under CCP section 473(d). (*Romadka, supra*, at p. 1235.) The appellate court reversed the trial court's order denying the motion to vacate, holding that the "attorney's lack of authority invalidated her dismissal" as void. (*Id.* at p. 1237.) In doing so, it relied on cases standing for the proposition that an attorney's unauthorized disposition of a client's substantive rights is invalid and the resulting judgment or dismissal is void. (See, e.g., *Linsk v. Linsk* (1969) 70 Cal.2d 272, 276 [counsel entered into a stipulation that the action could be decided on record made in prior trial over client's objection]; *Whittier Union High Sch. Dist. v. Superior Court* (1977) 66 Cal.App.3d 504, 506 [counsel forged clients' signatures and entered into settlement agreement without their knowledge].)

Here, Atchison authorized a dismissal of the case after consulting with counsel. Atchison contends, essentially, that it relied on incorrect legal advice concerning the legal effect of the dismissal. Atchison cites no case establishing that a voluntary dismissal based on erroneous legal advice is void or warrants relief under CCP section 473(b).

The Court finds for purposes of this motion that former counsel's errors were not excusable. Therefore, relief under the discretionary provision of CCP section 473(b) is not available to Atchison.

Motion to Amend the Sanctions Order

Even if the court were inclined to set aside the dismissal, it would not be inclined to modify the sanctions order. Mr. Cronin's declaration states that Atchison complied with its discovery obligations by providing Attorney Gabriel with all requested information and documents, so any discovery violations

arose from counsel's failures, and not Atchison's.

Atchison's showing amounts to a claim of attorney malpractice. CCP section 473(b) does not provide relief for professional negligence, and Atchison's recourse, if any, is against its former counsel. Additionally, as Defendant points out, Atchison's request to modify the sanctions order amounts to an untimely request for reconsideration, which had to have been filed within ten days of service of the Court's order and based on "new or different facts, circumstances, or law." (CCP § 1008(a).)

Atchison missed this jurisdictional deadline by several months, and it offers no facts that were not available at the time of the discovery hearing. The requirements for reconsideration are therefore not met.

Disposition

Based on the foregoing, the motion is **denied**.

4. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

Defendant Craig Crosley's Motion for Summary Judgment on Plaintiff Progressive West Insurance Company's Complaint is **granted**.

Background

Progressive issued a motorcycle insurance policy, policy number 44055053, to Mr. Crosley for many years, which was renewed annually (the "Policy"). (Separate Statement in Support of Motion for Summary Judgment ("SS") A11.) The Policy provided multiple coverages, including uninsured and underinsured motorist coverage. (Decl. of Crosley, ¶ 3.)

In late 2022, Mr. Crosley's wife gave him a golf cart as a gift (the "Golf Cart"). (Decl. of Crosley, ¶ 2.) Mr. Crosley planned to use the Golf Cart at his local golf course. (Decl. of Crosley, ¶¶ 2, 3.) The golf course required all golf carts to carry liability insurance. (Id.) To comply with this requirement, Mr. Crosley called Progressive on January 2, 2023 to add the Golf Cart to his existing policy. (SS B3.) The Progressive agent informed Mr. Crosley that the Golf Cart would need to be insured under his motorcycle policy. (SS B4.)

During that call, Progressive asked Mr. Crosley a series of questions about the Golf Cart. The agent asked whether it would be registered for street use, to which Mr. Crosley responded that it would not be. (SS B5.) Progressive asked whether it would exceed 20 miles per hour, and Mr. Crosley stated that it went approximately 15 miles per hour "tops" and that it was electric. (SS B5, B7.) When asked whether it had a VIN, Mr. Crosley explained that he had searched for one and had been unable to find it. (Decl. of Schwartz, Exh. A, p. 16, lines 19–28.) When asked, "so we don't know if we have a state assigned VIN number, right?", Mr. Crosley replied, "Well it's not street legal so I highly doubt a VIN number." (SS B8.) He informed Progressive that the Golf Cart was a used 2013 EZ Go TXT golf cart. (SS B5.)

In response to the question, “Does the vehicle have a modified frame or has its performance been enhanced with nitrous oxide, a turbocharger, or a supercharger?”, Mr. Crosley responded, “No, it’s stock.” (SS B6.) He further informed Progressive that the Golf Cart would be stored in his garage at his home in Discovery Bay. (SS B5.) Based on the insurance requirements of his golf course and the coverages offered by Progressive, Mr. Crosley increased his liability limits to a \$500,000 combined single limit, which resulted in a corresponding \$500,000 limit for uninsured/underinsured motorist coverage under the Policy. (Decl. of Crosley, ¶ 3.)

Prior to the January 2, 2023 call, Mr. Crosley had searched the Golf Cart for a VIN. (Decl. of Schwartz, Exh. A, p. 16, lines 21–27.) Despite examining the vehicle, he was unable to find one. (*Id.*) In fact, the Golf Cart, as a golf cart not registered for street use, did not have a VIN. (SS A6.)

Progressive nonetheless added the Golf Cart to the Policy without a VIN. (SS B9.) Progressive provided Mr. Crosley with information regarding the increased premiums for the remainder of the policy period, which ended on March 1, 2023, and the premium to be charged for the renewal period from March 1, 2023 to March 1, 2024. (SS B10.) That same day, Progressive issued two letters acknowledging that the Golf Cart had been added to the Policy. In the second letter, Progressive stated: “We don’t have accurate vehicle identification numbers (VINs) for the vehicles listed below... please provide us with a valid VIN for the following vehicles: 2013 E-Z GO GOLF CART MODELS,” and requested a response by February 4, 2023. (SS B11, D7.) Progressive charged Mr. Crosley the increased premium for adding the Golf Cart. (SS B10–12.)

Progressive did not cancel the Policy at that time. (SS D8.) Instead, despite not having a VIN, Progressive renewed the Policy for the March 1, 2023 to March 1, 2024 policy period. (SS D9.) The renewal declarations page listed the Golf Cart as a covered vehicle and stated “VIN: Not Provided,” and reflected a separate premium for the Golf Cart. (Decl. of Crosley, Exh. D.) The renewal notice did not state that the VIN needed to be provided. (*Id.*)

On March 2, 2023, Progressive issued a letter to Mr. Crosley stating, “We have received the information you sent – Thank you. However, we can’t use it because the proof provided is not valid,” and again requesting that Mr. Crosley provide a valid VIN for the “2013 E-Z GO GOLF CART MODELS.” (SS A5.)

On May 7, 2023, Progressive purportedly cancelled the Policy based on a failure to provide a VIN for the Golf Cart. (SS A11.) The Policy permits mid-term cancellation only for specified reasons, including “a substantial increase in the hazard insured against as defined by Section 2632.19 of the Regulations of the California Insurance Commissioner, as amended.” (SS A4.)

In its denial letter addressing the claim at issue in the cross-complaint, Progressive explained that it was refusing payment “because you did not comply with our request for additional information needed to verify a vehicle on your policy,” and stated that Mr. Crosley did not provide the “VIN or registration number.” (SS B18.)

On May 24, 2023, Mr. Crosley was riding his motorcycle when he was injured in a serious accident. (Decl. of Schwartz, Exh. A, p. 19, lines 4–5.) Mr. Crosley was informed that the at-fault driver did not carry liability insurance. (*Id.*) After tendering a claim for uninsured/underinsured motorist benefits, Progressive issued a letter stating that “there may be no coverage because your policy canceled prior to the accident.” (*Id.* at pp. 7–8, 14–19.) Progressive has continued to deny coverage. (*Id.* at p. 20, lines 7–8.)

Crosley moved for summary judgment, contending that Progressive lacked authority to cancel the Policy

mid-term under California insurance law and regulations. Crosley advances multiple theories, including that: (1) the Golf Cart did not have a VIN and Progressive's demand for a VIN was not reasonable; (2) a VIN was not necessary to underwrite or classify the risk; (3) Progressive's written requests did not comply with regulatory requirements due to the absence of a Spanish translation; (4) cancellation was barred by 10 CCR section 2632.19(a)(8) because the addition of a vehicle does not constitute a substantial increase in hazard; and (5) cancellation was barred by section 2632.19(e) because Progressive renewed the Policy with notice of the condition later relied upon for cancellation.

Progressive opposed the motion, arguing that cancellation was justified because Crosley failed to provide underwriting information necessary to classify the vehicle risk. Progressive contends it sought not only a VIN, but also another numeric identifier, such as a serial or model number, to confirm that the vehicle was a golf cart rather than a higher-risk vehicle. Progressive further argues that the cancellation was based on Crosley's failure to provide requested information after renewal and therefore was not barred. Progressive also contends its correspondence satisfied applicable regulatory requirements, including the Spanish-language requirement. Crosley does not contend that he is unable to understand English or that he failed to understand the substance of Progressive's requests.

Progressive's operative complaint seeks declaratory relief that it validly cancelled the Policy prior to the accident and therefore owed no coverage on the date of loss. Crosley moves for summary judgment in his favor on the complaint. Although Crosley has filed a cross-complaint asserting additional claims, the present motion is directed to Progressive's claim for declaratory relief.

After the motion for summary judgment was filed, Progressive filed a motion for leave to amend the complaint, seeking to conform its pleaded theory to the broader theory advanced in opposition to summary judgment, namely, that cancellation was based on Crosley's failure to provide a VIN or other numeric identifier and that renewal of the Policy was conditional.

Crosley opposed Progressive's request for leave to amend on the ground that the proposed amendment would assert a new theory not pleaded in the complaint. Crosley argued that Progressive's declaratory relief claim was limited to the theory that it lawfully cancelled the Policy mid-term based on a failure to provide underwriting information, and that Progressive could not, after summary judgment briefing, shift its theory to avoid an adverse ruling.

For the reasons set forth below, the court concludes that Progressive lacked statutory authority to cancel the Policy mid-term and grants Crosley's motion for summary judgment. Because summary judgment is granted, Progressive's motion for leave to amend is denied as moot and, in any event, futile.

Standard

Any party to an action may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a)(1); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (Aguilar).) The object of the summary judgment procedure is "to cut through the parties' pleadings" to determine whether trial is necessary to resolve their dispute. (*Ibid.*)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (*Id.*, subd. (f)(2).)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie

showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at p. 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.*, at p. 851.) A defendant moving for summary judgment may satisfy its initial burden either by producing evidence of a complete defense or by showing the plaintiff's inability to establish a required element of the case. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 853.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.*, at p. 856.)

In evaluating the summary judgment motion and opposition, the trial court "must consider all of the evidence and all of the inferences drawn therefrom." (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party's evidence is strictly construed, while the opponent's is liberally construed. (*Id.* at p. 843.)

Analysis

Crosley advances multiple arguments in support of summary judgment, all directed at Progressive's claim that it owed no obligations because the policy purportedly cancelled effective May 7, 2023 based on a failure to provide vehicle identification information. The Court resolves the motion on a narrower ground and that is whether Progressive had statutory authority to cancel Crosley's policy mid-term. The court concludes that it did not.

Progressive argues it had statutory authority to cancel the Policy mid-term because Crosley's failure to provide requested vehicle identification information after renewal constituted a substantial increase in the hazard insured against under 10 CCR section 2632.19(b)(1). Progressive contends that it renewed the Policy on a conditional basis while continuing to seek information it believed necessary to underwrite or classify the risk, and that Crosley's post-renewal noncompliance created a new underwriting hazard arising during the policy period. Progressive further frames Crosley's position as one of waiver or estoppel and argues that triable issues of fact preclude summary judgment.

Crosley responds that Progressive's waiver and estoppel arguments misstate the issue, which is governed by the regulatory timing limitation in 10 CCR section 2632.19(e). Crosley argues that the regulation does not recognize a conditional renewal and that Progressive renewed the Policy while knowing it lacked the information it later relied on as the basis for canceling the policy. According to Crosley, the continued absence of that information after renewal cannot constitute a post-renewal substantial increase in hazard where the condition existed and was known at the time of renewal.

California insurance law limits an insurer's ability to cancel an automobile policy once issued or renewed. Under the law, an insurer may cancel mid-term only under narrowly defined circumstances, including a substantial increase in the hazard insured against. (Insurance Code § 1861.03(c)(1); 10 CCR § 2632.19(b)(1).) That authority is expressly limited by subdivision (e), which prohibits treating a condition as a substantial increase in hazard unless part of the circumstances giving rise to that increase occurred after the most recent issuance or renewal of the policy, or unless the insurer lacked notice of the condition during the 60 days preceding renewal. (10 CCR § 2632.19(e).)

Here, Progressive did not have a VIN or other identifying number when it added the Golf Cart to the Policy on January 2, 2023 or when it renewed the Policy on March 1, 2023. Progressive therefore knew at the time of renewal that it lacked the information necessary to determine the vehicle's classification

and assess the risk.

By renewing the Policy with knowledge that it lacked information it believed was necessary to determine the vehicle's classification and assess the risk, Progressive could not later treat the continued absence of that same information as a post-renewal increase in the hazard insured against. The point is not the label attached to the information requested, but that Progressive knew at renewal that it did not have the information it considered necessary to underwrite the risk.

Insurance Code section 1861.03(c)(1) states that a cancellation is only effective if it is based on three conditions: nonpayment of premiums, fraud, or a substantial increase in the hazard insured against. It does not say a policy may be cancelled for failure to comply with the terms of a supposedly "conditional renewal". 10 CCR § 2632.19, which defines what shall, may, or may not constitute a substantial increase in the hazard insured likewise makes no reference to a "conditional renewal" or the ability of an insurer to cancel a policy based on a supposedly conditional renewal. In fact, neither the Insurance code section nor the accompanying regulation makes any reference to a supposed "conditional renewal". There is no authority stating that an auto insurer may conditionally renew a personal insurance policy while knowingly lacking information it deems necessary, then cancel mid-term when that same information remains unavailable. Moreover, nothing in the documentation said that coverage was conditional, provisional, or subject to later underwriting approval.

Because Progressive lacked statutory authority to cancel the Policy mid-term on these facts, the purported cancellation was invalid. The Policy therefore remained in effect on the date of the accident, and Crosley is entitled to summary judgment on Progressive's cause of action for declaratory relief. The Court need not reach Crosley's alternative grounds for relief.

Objections to Evidence

The court rules as follows on Progressive's objections to evidence.

Incomplete Policy

Progressive objects to Exhibit A to the Crosley Declaration on the ground that the exhibit is not a complete copy of the Policy. Progressive's complaint admits the existence of the policy and that it issued and maintained coverage. (Complaint ¶ 8.) There is no genuine dispute regarding the policy's existence or applicability. Progressive claims the policy is offered to show "circumstances under which policies may be cancelled...." (See Objection, p. 2.) It is not. The objection is overruled.

Plaintiff's Use of his Own Interrogatory Responses

Progressive objects to Crosley's citation to his own amended interrogatory responses under CCP section 2030.410, which governs use of interrogatory answers at trial or hearing. The objection is sustained. (See *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450 [a "party may not use its own interrogatory responses in its own favor" at trial or any other hearing]; see also § 2030.410.) However, the material facts at issue are independently supported by other admissible evidence.

Neuliep Declaration

Progressive objects to the declaration of Steven Neuliep on lack-of-personal-knowledge grounds. Mr. Neuliep declares that he has worked in the golf course industry for over thirty years and has personal knowledge of the characteristics of the subject golf cart. A witness's personal knowledge may be established by the witness's own testimony. (Evid. Code § 702, subd. (b).) The objection is overruled.

Plaintiff's Reliance on the Complaint

Progressive objects to Crosley's reliance on factual allegations in Progressive's own complaint. Facts alleged in an operative pleading may be relied upon in summary judgment. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) The objection is therefore overruled.

5. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLY
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY:

TENTATIVE RULING:

Progressive West Insurance Company's Motion for Leave to File a First Amended Complaint is **denied**.

Progressive seeks to amend the complaint to allege that cancellation was based not solely on Crosley's failure to provide a VIN, but on his failure to provide a VIN or other numeric identifying information necessary to verify or classify the Golf Cart, and that the policy renewal was effectively conditional pending receipt of that information.

Because the court grants summary judgment in Crosley's favor on Progressive's complaint, the motion for leave to amend is moot. The dispositive issue on summary judgment is whether Progressive had statutory authority to cancel the policy mid-term based on the asserted underwriting deficiency. As explained in the court's summary judgment ruling, mid-term cancellation is barred where the circumstances relied upon by the insurer existed prior to renewal and were known to the insurer at the time of renewal. Here, Progressive knew that lacked information needed to determine the vehicle's classification and assess the risk when it renewed Crosley's policy.

6. 9:00 AM CASE NUMBER: C23-02575
CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK
***HEARING ON MOTION FOR DISCOVERY MONETARY SANCTIONS FOR EGREGIOUS DISCOVERY MISCONDUCT FILED BY ANDRADE, MATTHEW / SEE MINUTES DATED 1/28/2026**
FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Matthew Andrade's ("Plaintiff" or "Andrade") Motion for Sanctions against Defendant Chris Petlock ("Defendant" or "Petlock") is **denied** as set forth herein.

Background

This is a continued hearing from January 28, 2026. The Court had ordered the parties to meet and confer to resolve Plaintiff's request for sanctions in the amount of \$46,343.15 for costs and fees incurred in taking the deposition of Defendant Chris Petlock, who was, at all relevant times, the Human Resources Manager for Defendant Pleasant Hill Recreation and Park District ("District"). The Court ordered counsel to submit declarations outlining their meet and confer efforts no later than

five days before the hearing. The Court reviewed the declarations by Counsel Serena Warner and Casey Dagget in making this ruling. The Court is satisfied that the parties complied with the Court's order to meet and confer. However, the matter of the sanctions are unresolved. For the reasons set forth below, Plaintiff's request for sanctions is denied.

In the underlying motion filed on October 17, 2026, Andrade sought sanctions in the amount of \$46,343.15 against Petlock and his counsel for discovery misconduct related to the deposition of Petlock. Andrade asserts that Petlock walked out of his second remote deposition after only thirty minutes. Petlock had previously appeared for his first remote deposition for seven hours without issue. Andrade further asserts that Petlock unreasonably refused to permit any continued remote depositions due to "anxiety," and instead required Plaintiff's counsel to take the deposition in person. At Petlock's in-person deposition, his counsel refused to produce any responsive documents. At the in-person deposition on August 6, 2025, counsel claims that Petlock "continuously cursed at me, shouting profanity at me a mere two feet away, and pounded his hand against the table on multiple occasions" fearing for his safety. Petlock's counsel coached Petlock, improperly instructed Petlock not to answer questions, and continuously made obstructive comments without stating an objection.

Andrade further claims that Petlock and his counsel admitted during the deposition proceedings that they had not even reviewed the document requests prior to appearing for the deposition. At the deposition, Petlock claims that he would be more comfortable having his deposition conducted remotely. Andrade attaches excerpts of the deposition testimony that was taken of Petlock, which this court has reviewed in part.

Petlock's opposition filed on January 7, 2026 disputes most of Andrade's claims. First, Plaintiff's original notice of deposition did not request production of documents. The amended notice of Petlock's deposition contained multiple requests for production of documents. However, counsel claims that the notices was not served twenty days prior to the deposition as required by the Discovery Act. Counsel disputes that she had improperly coached Petlock during his deposition. Furthermore, Petlock claims that he appeared for deposition on March 27, 2025 for a full day. Petlock claims that during the deposition, Counsel Daggett had asked antagonistic questions and had called him an inappropriate name. It caused him stress and heightened anxiety.

While the court reviewed the deposition testimony of certain contested issues, the court did not review the entirety of the 438 pages, only the highlighted portions submitted by counsel.

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or

intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally. CCP Section 2023.030(a) provides: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Applied here, first, the Court does not find that Petlock had engaged in the misuse of the discovery process. He attended this first deposition remotely and ended his second remote deposition early for reasons related to his anxiety, which the Court finds to be justifiable. Petlock also submitted to his third in-person deposition on August 6, 2025, and appeared for his fourth deposition on August 7, 2025. He also appeared as his fifth deposition session on November 11, 2025. This record does not support that Petlock refused to submit to discovery. Moreover, in reviewing the objections and instructions made by Counsel Serena Warner, the Court does not find that Defendant's attorney made unmeritorious objections to questions posed by Counsel Daggett.

Next, the Court finds that Plaintiff's incurred fees and costs are excessive. Plaintiff's counsel claims that he incurred costs for travel in the amount 20 hours at \$175.00 per hour to drive up from Temecula to Concord California, and for the return drive. He also incurred costs to in the amount of 18 hours to print out, staple and organize exhibits for this deposition, producing thousands of pages of documents in exhibits to take to the deposition. He also billed these costs at \$175.00 per hour. He also purchased a scanner to scan those pages. It is unknown as to why Plaintiff's counsel did not use air travel, which may have been less expensive for his client, or use an office service to handle simple clericals tasks, such as copying, stapling and organizing exhibits, which may have yielded significant savings. Other costs borne by Plaintiff include travel time from the hotel to the deposition site, changing reservations, preparation time, and organizing exhibits. While these costs appear to be legitimate, they are normally incurred for depositions noticed by opposing party. The Court doesn't find good cause to award costs of preparing for a deposition to the opposing party and counsel.

Moreover, Andrade chose to retain counsel whose primary office is located in Temecula, California for

a case venued in Contra Costa County. The costs for counsel's 10 hour 900 mile road travel for an in-person deposition that he noticed should not be borne by Defendant, especially where a flight may have been less expensive for Plaintiff. The Court finds that the travel and administrative costs appear to be excessive, and also finds that the \$46,343.15 costs are, as a whole, avoidable had Plaintiff's counsel employed less expensive means for travel and for the production of documents. Moreover, fees normally incurred in preparing for depositions of an opposing party are not normally recoverable from the opposing party.

Ruling

Based on the foregoing, the Court **denies** Plaintiff's motion for sanctions. Each party to bear their own costs and fees for this motion and for the costs incurred in Plaintiff's deposition of Defendant Chris Petlock.

7. 9:00 AM CASE NUMBER: C24-01128
CASE NAME: ANTON GEYN VS. HERSH PATEL, MD
***HEARING ON MINOR'S COMPROMISE RE: OLGA GEYN**

FILED BY: GEYN, ANTON

TENTATIVE RULING:

Summary

Petitioner Anton Geyn's Petition for Approval of Compromise of Minor Olga Geyn's (DOB 10/15/2015) ("Minor") Claim filed on January 22, 2026, is **granted**, as set forth below. No appearance is required at the February 25, 2026 hearing.

Background

Petitioner Anton Geyn, parent and guardian *ad litem* for his daughter, Minor, filed the Petition through counsel Walkup Melodia, et al., to compromise the claim that Minor has against Hersh Patel M.D, John Muir Health and that occurred on or about February 1, 2023 in Walnut Creek, California. Minor's father, and Petitioner, Anton Geyn, alleges that a delayed diagnosis and treatment of his prostate cancer by over a year progressed to an incurable stage, which could have been cured had he been notified of elevated PSA test results by Dr. Patel and John Muir Health. The Defendants, Dr. Patel and John Muir, offered \$50,000 to compromise minor's claim. The deduction of \$17,335.24 pays for attorney's fees and costs incurred. The net settlement amount of \$32,664.46 will be placed into a single-payment deferred annuity account with Pacific Life Insurance Company for Minor as set forth in the Petition.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged with the Court on January 22, 2026. No appearances is required at the February 25, 2026 hearing.

8. 9:00 AM CASE NUMBER: C24-01216
CASE NAME: SAM CHELLAKAN VS. JOHN SATHRI

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT OF ATTACHMENT

FILED BY: CHELLAKAN, SAM

TENTATIVE RULING:

Before the Court is Plaintiff Sam Chellakan's Application for Issuance of Writ of Attachment and Right to Attach Order.

Plaintiff's application is **denied** as set forth below.

Factual Allegations

Relevant to this matter, Plaintiff asserts a cause of action for breach of contract related to a promissory note dated May 5, 2024. The Promissory Note was entered into between Plaintiff Sam Chellakan and Defendant John Sathri. (Chellakan Decl. Ex. C.) It notes that Mr. Sathri borrowed \$100,000 from Mr. Chellakan, at an interest rate of 12% "with total amount payable of (One Hundred Six Thousand Dollars on or before November 30, 2024." (*Ibid.*) The Note also specifies: "Collateral to this Loan Amount of \$100,000 (One Hundred Fifty Thousand (sic) US Dollars) will be the property located at 30-32 Century Oaks Ct., San Ramon, CA." (*Ibid.*)

By this application, Plaintiff seeks a writ of attachment in the amount of \$110,000 on two separate properties: (1) 30-32 Century Oaks, San Ramon, CA 94583 (the "Property"), and (2) 9815 Broadmoor Drive, San Ramon, CA 94583.

Defendant opposes the application, arguing that Plaintiff has failed to present sufficient evidence to meet his burden to show that a writ of attachment is appropriate in this matter. He also argues that Plaintiffs has failed to establish the probability of his claim.

Standard

"Under Code of Civil Procedure section 483.010, a prejudgment attachment may issue only if the claim sued upon is (1) a claim for money based upon a contract, express or implied; (2) of a fixed or readily ascertainable amount not less than \$500; (3) either unsecured or secured by personal property, not real property (including fixtures); and (4) commercial in nature." (*Goldstein v. Barak Construction* (2008) 164 Cal.App.4th 845, 852.)

In issuing a writ of attachment, the court must make the following findings:

- (1) The claim upon which the attachment is based is one upon which an attachment may be issued.
- (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.
- (3) The attachment is not sought for purposes other than the recovery on the claim upon which the attachment is based.
- (4) The amount to be secured by the attachment is greater than zero.

(CCP § 484.090(a).)

Attachment is a harsh remedy because it causes the defendant to lose control of their property before the plaintiff's claim is adjudicated. (See *Martin v. Aboyan* (1983) 148 Cal.App.3d 826, 831.)

Because of this, the statutory requirements are strictly construed. (See *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The court will issue a right to attach order if the plaintiff's declarations establish the probable validity of the plaintiff's claim. (Code Civ. Proc. § 484.090(a)(2).) The Plaintiff has the burden of proving both that its claim is one upon which an attachment may be issued and the probable validity of such claim. (*Bank of America v. Salinas Nissan, Inc.* (1989) 207 Cal.App.3d 260, 271.)

A defendant who opposes a right to attach order must give notice of his objection, "accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised." (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Analysis

As the party seeking attachment, Plaintiff has the burden of proving (1) that his claim is one upon which an attachment may be issued and (2) the probable validity of such claim. (*Bank of America v. Salinas Nissan, Inc.* (1989) 207 Cal.App.3d 260, 271.) Defendant contends Plaintiff has failed to meet this burden on several fronts. Defendant does not appear to dispute that the claim sued upon is based on an express contract and is for a fixed or readily ascertainable amount. Defendant does argue that the amount at issue is less than \$500 and also focuses on the third and fourth elements – the loan is not commercial and it is secured by real property.

Commercial Purpose

"A purpose of the attachment statutes is to confine attachments to commercial situations and to prohibit them in consumer transactions." (*Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson* (1987) 197 Cal.App.3d 1, 4 ("Kadison").) As stated by the statute: "If the action is against a defendant who is a natural person, an attachment may be issued only on a claim which arises out of the conduct by the defendant of a trade, business, or profession." (Code Civ. Proc. § 483.010(c).)

Plaintiff has the burden "to show, among other things, that the claim sued upon arose out of the conduct by this individual defendant of a trade, business or profession." (*Nakasone v. Randall* (1982) 129 Cal.App.3d 757, 762.) "Those terms [i.e. trade, business, or profession] 'may be found to encompass almost any activity engaged in for profit with 'frequency and continuity....'" (*Kadison*, supra, 197 Cal.App.3d at 4 quoting *Advance Transformer Co. v. Superior Court* (1974) 44 Cal.App.3d 127, 130.)

Initially, it is unclear what Plaintiff is asserting is Defendant's 'trade, business, or profession.' While Mr. Chellakan's declaration indicates that Defendant is "a pastor at the Indian Community Church of the Valley ("ICCOV")", he does not state that this is Defendant's trade, business or profession. Defendant could have another full-time job and only perform the functions of a pastor on weekends. Even if being a pastor is Defendant's 'trade, business or profession,' it is unclear how the purchase of the Property relates to being a pastor. Real estate investments are not generally a part of a pastor's duties.

Mr. Chellakan's declaration indicates that the purpose of the \$100,000 loan was "to cover taxes and insurance for" the 30-32 Century Oaks property. (¶ 6.) The Property was supposedly purchased by

Defendant to perform church services there. There is no evidence indicating what the Property is being used for, much less that it is being used for church services.

In Reply, Plaintiff notes that Defendant's declaration "reflects that he is subdividing the Property in anticipation of 'future sale.'" This appears to contradict any assertion that it was purchased to perform church services. The purchase of property to subdivide and later sell also does not appear to relate to the duties of a pastor.

The evidence appears to show a personal loan to a friend and church mentor to assist during a time of financial uncertainty. Even if performing church services was Defendant's profession, the loan does not appear to be related to that activity. Not only must "the individual against whom attachment is sought ... be engaged in a trade or business, but that the obligation underlying the action must arise directly out of the conduct of the trade or business." (*Great American Ins. Co. v. National Health Services, Inc.* (1976) 62 Cal.App.3d 785, 794.) Plaintiff has provided no admissible evidence establishing that Defendant obtained the loan from Plaintiff as part of his 'trade, business or profession.'

In Reply, Plaintiff argues that Defendant "offers no evidence supporting the assertion in the Opposition that 'the money was used for personal, family, or household purposes.'" The burden, however, is on Plaintiff to show the money was used for commercial purposes. (*Nakasone*, supra, 129 Cal.App.3d 762.) The Defendant does not need to prove otherwise.

Conclusion

Attachment is a harsh remedy because it causes the defendant to lose control of their property before the plaintiff's claim is adjudicated. (*Martin*, supra, 148 Cal.App.3d at 831.) Because of this, the statutory requirements are strictly construed. (*Kemp Bros. Construction, Inc.*, supra, 146 Cal.App.4th at 1476.) Plaintiff has the burden "to show, among other things, that the claim sued upon arose out of the conduct by this individual defendant of a trade, business or profession." (*Nakasone*, supra, 129 Cal.App.3d at 762.) Plaintiff must also show Not "that the obligation underlying the action [arose] directly out of the conduct of the trade or business." (*Great American Ins. Co.*, supra, 62 Cal.App.3d at 794.)

Plaintiff has failed to provide evidence that the loan relates to a commercial transaction. Accordingly, Plaintiff's application for a writ of attachment and right to attach order is **denied**.

9. 9:00 AM CASE NUMBER: C24-03299
CASE NAME: EXO ENERGY, INC. VS. COMPLETE SOLAR, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: COMPLETE SOLAR, INC.

TENTATIVE RULING:

Defendant Complete Solar's Motion to Compel Arbitration, filed on October 24, 2026, is **granted**. Plaintiff Exo Energy filed a notice of non-opposition on February 10, 2026. The Court will execute the proposed order lodged by Defendant on October 24, 2026. This matter is stayed pending arbitration. No appearance is required at the hearing on February 25, 2026.

10. 9:00 AM CASE NUMBER: C25-00578

CASE NAME: DEVON WENGER VS. ROBERT MEADS

***HEARING ON MOTION IN RE: SEAL OR REDACT PORTIONS OF THE COMPLAINT**

FILED BY:

TENTATIVE RULING:

Non-party KK's Motion to Seal and redact portions of the complaint filed on November 18, 2026 is **granted**, in part. No timely opposition was filed with the Court. The Court shall order redaction of the portions of the complaint requested by non-party KK. Counsel for KK shall prepare a proposed order granting the motion as requested no later five (5) court days from the hearing. Said proposed order shall be accompanied by a redacted complaint. The redacted complaint shall replace the complaint filed February 28, 2025. No appearance is required at the hearing on February 25, 2026.

11. 9:00 AM CASE NUMBER: C25-00839

CASE NAME: RANDY ROBBINS VS. LAW OFFICES OF ROBYN DUNLAP

***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS,**

FILED BY: DUNLAP-KRASZEWSKI, ROBYN

TENTATIVE RULING:

Summary

Defendants Motion for attorney's fees and costs is **granted** as set forth herein.

Background

On October 7, 2025, the Court issued an order after hearing granting Defendants Robyn Dunlap-Kraszewski, sued erroneously as "Robyn Elaine Dunlap (aka 'Robyn Kraszewski')," Law Office of Robyn Dunlap, and Sharon E. Reno ("Defendants") Motion to Strike the complaint pursuant to the anti-SLAPP statute, which was heard on September 3, 2025. There, the Court found that Defendants met their initial burden under Prong 1 of demonstrating the complaint for malicious prosecution arises out of protected activity. When the burden shifted to Plaintiffs, Plaintiffs failed to prove a probability of prevailing by proving with admissible evidence the minimal merit of each essential element of their malicious prosecution claim.

On October 28, 2025, Defendants filed a Motion for Attorney's fees and Costs, seeking \$76,319 in attorney's fees, \$1,866.81 in costs in connection with the Special Motion to Strike, and \$23,133 to reimburse Defendants for the work expended for this Motion. Defendants make this Motion on the grounds that "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorneys' fees and costs." Cal. Civ. Proc. Code § 425.16(c). A separate motion may be filed to recover those fees and costs. See *Martin v. Inland Empire Utilities Agency*, (2011) 198 Cal. App. 4th 611, 631; see also *Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.*, (2022) 73 Cal. App. 5th 764, 772–784 (discussing fees recovery options and timing issues).

Plaintiffs Randy Robbins and Sasha Jolley ("Plaintiffs") were required to file and serve any opposition to the Motion for Fees at least nine (9) court days before the scheduled hearing. Cal. Civ. Proc. Code §1005, subd. (b). Nine court days before the hearing is February 10, 2025. Plaintiff did not file a timely opposition to the motion. On February 18, 2026, Defendants filed a Notice of Non-Opposition. In the interim, however, Plaintiffs filed an appeal to the Order Granting Defendants' Special Motion to Strike

on November 20, 2025.

Analyses

1. Defendants' Motion for Attorney's Fees is not Stayed Pending Appeal

Cal. Code of Civ. Proc. § 425.16(c)(1) states:

“Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike **shall be entitled to recover that defendant's attorney's fees and costs**. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” [Emphasis added]

The first issue before this is Court is whether an unopposed motion for attorney's fees and costs is stayed pending Plaintiff's appeal filed on November 20, 2025.

In addressing this issue, the Court turns to *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1406, in which a similar issue was analyzed by the 4th District Court of Appeal. There, the petition presents a question of first impression: Whether a prevailing SLAPP defendant's enforcement of a judgment awarding attorney fees and costs under subdivision (c) of section 425.16 is automatically stayed by the SLAPP plaintiff's perfecting of an appeal from that judgment. The *Dowling* court held that “a SLAPP plaintiff's perfecting of an appeal from a judgment awarding attorney fees and costs to a prevailing SLAPP defendant under subdivision (c) of section 425.16 does not automatically stay enforcement of the judgment.”

In arriving at its holding, the *Dowling* court reasoned that section 425.16 was enacted to deter and prevent SLAPP suits. (*Church of Scientology v. Wollersheim* (1996) 42 Cal. App. 4th 628, 636.) The anti-SLAPP statute is California's response to the problems created by meritless lawsuits brought to harass those who have exercised their First Amendment constitutional rights of free speech and petition for the redress of grievances. (*Id.* at p. 644.) The legislative intent to afford the victims of SLAPP suits a swift and effective remedy is clear. “California enacted section 425.16 to provide a procedural remedy to resolve such a suit expeditiously.” (*Church of Scientology v. Wollersheim, supra*, at p. 645. The Legislature expressly set forth the intent and purpose underlying the anti-SLAPP statute in subdivision (a) of section 425.16: “The Legislature finds and declares that there has been a disturbing increase in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances. The Legislature finds and declares that it is in the public interest to encourage continued participation in matters of public significance, and that this participation should not be chilled through abuse of the judicial process. To this end, this section shall be construed broadly.”

In deciding the issue presented, the *Dowling* court held that “it must therefore construe the anti-SLAPP statute “broadly” in order to effectuate its purposes and give effect to the Legislature's intent to provide a swift and effective remedy to SLAPP suit defendants. To prevail on a special motion to strike under section 425.16, a SLAPP defendant ordinarily must have competent legal representation,

regardless of whether the defendant is an attorney or whether the defendant initially appears in the action in *propria persona*. The special motion to strike a SLAPP suit provided under section 425.16 is the remedial tool the Legislature gave to victims of such meritless suits. In our view, the purpose of the anti-SLAPP statute will be promoted by construing that statute broadly to permit a pro se SLAPP defendant, who has successfully brought a special motion to strike the offending SLAPP suit with the assistance of specially retained counsel, **to recover mandatory reasonable attorney fees to compensate the retained counsel for the legal services provided.**” *Dowling v. Zimmerman, supra*, 1424-1425.[Emphasis added]

It is true that *Dowling* is distinguishable as it relates to a stay on enforcement of a judgment. This case does not seek a stay on enforcement of a judgment. However, other relevant authorities hold that an “appeal does not stay proceedings on ‘ancillary or collateral matters which do not affect the judgment [or order] on appeal’ even though the proceedings may render the appeal moot.” See *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 191. “A post-judgment or post-order proceeding is also ancillary or collateral to the appeal despite its potential effect on the appeal, if the proceeding could or would have occurred regardless of the outcome of the appeal.” (*Ibid.*) Applied here, Plaintiff’s appeal does not have the effect of staying an award of attorney’s fees since it is ancillary to the merits of the motion, regardless of the outcome of the appeal. To rule otherwise would frustrate the purpose of the Anti-SLAPP legislation and deny the important procedural remedy to Defendants afforded by the statute.

2. Defendants’ Fees and Costs are Reasonable

The Court carefully reviewed the Declaration of Leyla Pasic submitted to support the attorney’s fees incurred. The Court considered the *Lodestar* factors, counsel’s 18 years of extensive trial experience, her discounted hourly rate of \$555.00, and the Laffey Matrix. The Court also carefully considered the fees expended by Mr. B. Douglas Robbin, his 23 years of experience, and his customary hourly rate of \$720.00 per hour. In reviewing the total amount of hours spent (111.2 hours) in preparing the Anti-SLAPP motion, the Court finds that the attorney’s fees in the amount of \$76,319 in preparing for and prosecuting the motion are reasonable.

The Court also finds that the costs in the amount of \$1,866.81 are reasonable, as are the fees expended in preparing this Motion for Attorney’s fees and costs, which total \$23,155. As such, the Court finds that the fees and costs in prosecuting this Anti-SLAPP motion, which total \$101,340.81 are reasonable.

3. Plaintiff Did not Oppose the Motion for Attorney’s Fees

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United*

Airlines, Inc. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Moreover, a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court*, (1997) 58 Cal. App. 4th 1403, 1410, noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “Failure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the Court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiffs’ failure to timely is deemed to be their consent to the granting of the motion for attorney’s fees and costs.

Ruling

1. Defendant’s Motion for Attorney’s fees and Costs as prevailing Defendants pursuant to Cal. Code of Civ. Proc. § 425.16(c) is granted.
2. Plaintiffs and their attorney, Jonathan Borstein, Bornstein & Bornstein Law Group, shall pay the amount of \$101,340.81 to Defendants no later than thirty (30) days from the date of this hearing.
3. Defendant’s shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of the hearing, attaching a copy of the tentative ruling.

12. 9:00 AM CASE NUMBER: C25-01017

CASE NAME: STEVEN KENT VS. RICHARD KENT

***HEARING ON MOTION IN RE: TO DISQUALIFY CAROLYN CAIN AS DEFENSE COUNSEL DUE TO HER STATUS AS A WITNESS AND CONFLICT OF INTEREST**

FILED BY: KENT, STEVEN JAMES

TENTATIVE RULING:

This motion was vacated on February 24, 2026, at the request of the Plaintiff. No appearance is required at the hearing on February 25, 2026.

13. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WONG, WENDY, MD

TENTATIVE RULING:

Before the Court is a demurrer by defendants Wendy Wong, M.D. and Golden State Orthopedics to plaintiff’s complaint. For the reasons set forth, the general demurrers to the second and third cause

of action of the complaint are **overruled**, and the general demurrer to the fourth cause of action is **sustained, with leave to amend**, as set forth below.

Background

Plaintiff alleges she underwent a total knee replacement performed by defendant Wendy Wong, M.D. at Golden State Orthopedics in Walnut Creek. (Compl. ¶ 11.) She alleges that in addition to placing a Zimmer Biomet knee replacement implant, Dr. Wong placed a Zimmer Biomet Persona IQ implant without her consent. (Compl. ¶ 11.) The Persona IQ implant is an electronic device with a battery and sensors used with the Mymobility Zimmer Biomet patient care app. (Compl. ¶ 13.) She alleges that implanting the additional electronic device caused an additional, unauthorized "surgical insult" to plaintiff's bone which would not have been injured if the Persona IQ device had not been implanted. (Compl. ¶¶ 13, 14.) Plaintiff alleges she has been harmed by the implantation of the Persona IQ device, that she has suffered injury to her physical and mental health, as well as pain and suffering. (Compl. ¶¶ 14, 15.)

Zimmer, Inc. has now appeared in the action as the true defendant, stating that it was erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. The Court refers to that defendant as "Zimmer" in this ruling.

Standards Governing Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (See also *City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App. 4th 116, 123.) The Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.)

The Court is limited to consideration of the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Questions of fact cannot be decided by the Court on demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 ["In considering the merits of a demurrer, 'the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation.]' [Citation omitted.]"].)

Generally, a complaint is sufficient if it pleads "ultimate" facts. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) "Ultimately, the complaint is sufficient if 'the adversary has been fairly apprised of the factual basis of the claim against him.' [Citations, internal quotations omitted.]" (*Randall v. Ditech Financial, LLC* (2018) 23 Cal.App.5th 804, 810.) Statutory causes of action, however, must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (See also *Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co., supra*, 19 Cal.4th at 39.)

Analysis

Plaintiff alleges causes of action against Dr. Wong and Golden State for professional negligence (1st C/A), failure to obtain informed consent (2nd C/A), medical battery (3rd C/A), and common law and statutory invasion of privacy (4th C/A). Defendants Dr. Wong and Golden State generally demur to the second through fourth causes of action on the ground the complaint does not allege facts sufficient to state those causes of action.

A. Failure to Obtain Informed Consent (2nd C/A)

In addition to the allegations set forth above, Plaintiff alleges in her second cause of action that she was not informed of the nature, purpose, and potential risks of implanting the Persona IQ electronic device and its ongoing transmission from her body, that she would not have consented to the implantation of the device had she been informed, that defendants breached their duty to Plaintiff to disclose material information necessary for Plaintiff to make an informed decision about her medical care, and that she has suffered severe injuries as a result. (Compl. ¶¶ 19-22.) Defendants contend to state a cause of action for failure to obtain informed consent, Plaintiff must allege that an undisclosed complication occurred that the physician had a duty to disclose and obtain the patient's consent to the risk. They contend the complaint does not allege Plaintiff suffered any undisclosed complication or injury from defendants' implanting the Persona IQ electronic patient monitoring device.

" 'The elements of a cause of action for breach of fiduciary duty are: (1) [the] existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.' [Citation omitted.] '[A] physician has a fiduciary duty to disclose all information material to the patient's decision,' when soliciting a patient's consent to a medical procedure. [Citations omitted.] A cause of action premised on a physician's breach of this fiduciary duty may alternatively be referred to as a claim for lack of informed consent. [Citation omitted.]" (*Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1164 [emphasis added, addressing claim in the context of a motion for summary adjudication].)

In addressing the duty of disclosure, the California Supreme Court explained, "In sum, the patient's right of self-decision is the measure of the physician's duty to reveal. That right can be effectively exercised only if the patient possesses adequate information to enable an intelligent choice. The scope of the physician's communications to the patient, then, must be measured by the patient's need, and that need is whatever information is material to the decision. Thus, the test for determining whether a potential peril must be divulged is its materiality to the patient's decision. [Citation omitted.]" (*Cobbs v. Grant* (1972) 8 Cal.3d 229, 245.) (*See also Arato v. Avedon* (1993) 5 Cal.4th 1172, 1186 ["Rather than mandate the disclosure of specific information as a matter of law, the better rule is to instruct the jury that a physician is under a legal duty to disclose to the patient all material information--that is, 'information which the physician knows or should know would be regarded as significant by a reasonable person in the patient's position when deciding to accept or reject a recommended medical procedure'--needed to make an informed decision regarding a proposed treatment." (Emphasis added.).])

Plaintiff has adequately alleged facts to state a cause of action for breach of fiduciary duty or lack of informed consent to the implantation of the Persona IQ device. She has alleged that the existence, nature, and purpose of the electronic device that would be implanted in addition to the total knee replacement implant was material information to her, that defendants had a duty to disclose that information, and that had she been informed of this material information, she would not have

consented to the implant of that device. She has alleged facts supporting that the information was material to her decision regarding the nature and scope of the knee replacement procedure, that defendants did not disclose the material information to her before implanting the device, and that she has been injured physically and mentally as a result of the unconsented-to implant of the electronic transmitting device in her body. (Compl. ¶¶ 11, 13, 14, 19-22.) Plaintiff also contends that the allegations are sufficient to plead that she was not informed of risks associated with the implantation of the Persona IQ device, including risks regarding the smart-tracking functionality of the device and that there would be ongoing transmission of data from Plaintiff's body, and that implanting the device involved an additional "surgical insult" to her bone. (Compl. ¶¶ 13, 19.) In their totality, the allegations are sufficient to state a claim for lack of informed consent.

The general demurrer to the second cause of action is **overruled**.

B. Medical Battery (3rd C/A)

The allegations of the complaint impliedly concede that Plaintiff consented to the total knee replacement surgery. Plaintiff, however, alleges that she did not consent to the implantation of the Persona IQ electronic transmitting device, and that the implantation of that device without her prior knowledge or consent constituted a "substantial deviation from the procedure Plaintiff consented to," that "Defendants' actions exceeded the scope of Plaintiff's consent and involved an unauthorized physical intrusion into her body." (Compl. ¶ 25.)

A plaintiff states a cause of action for medical battery by alleging the plaintiff was a patient who consented to one type of medical treatment or procedure, and the doctor performed a "substantially different treatment for which consent was not obtained." (*Cobbs, supra*, 8 Cal. 3d at 239.) In that circumstance, there is a "clear case of battery." (*Id.*) "When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present." (*Cobbs, supra*, 8 Cal.3d at 240.)

Defendants contend that implanting the Persona IQ device was part of the knee replacement surgery to which Plaintiff consented and that the facts alleged do not show the implantation of the electronic monitoring device was a different treatment or substantial deviation from the procedure to which Plaintiff consented. To support their argument, Defendants cite *Conte v. Girard Orthopedic Surgeons Medical Group, Inc.* (2003) 107 Cal.App.4th 1260. In that case, the plaintiff agreed to the surgical repair of a shoulder by placement of a screw, but the surgeon concluded during the course of surgery that repairing the shoulder with the screw would have caused more damage in his medical judgment. (*Id.* at 1268-1269 ["We see no policy reason to extend the law of battery to these circumstances where the treatment was within the bounds of Conte's consent. Kimball exercised his medical judgment in deciding not to install a fixation device, concluding that such a procedure would make the brittle bone disintegrate. If doctors were subject to liability for battery in such situations, it would deter them from freely exercising their medical judgment. Conte's recourse properly lay in a medical malpractice action, not a medical battery cause of action."].)

The Court in *Conte, supra*, 107 Cal.App.4th 1260 relied on by Defendants explained, "A typical medical battery case is where a patient has consented to a particular treatment, but the doctor performs a treatment that goes beyond the consent. 'When an action is based upon the theory of surgery beyond consent, the gist of such action is the unwarranted exceeding of the consent. This is a theory

of technical battery.' [Citation omitted.] . . . [¶] A doctor may not act beyond the patient's authorization except in life- or health-threatening situations." (*Id.* at 1267, 1268 [emphasis added].) "The law presumes that '[w]hen the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present.' [Citation omitted.]" (*Dennis v. Southard* (2009) 174 Cal.App.4th 540, 544.)

An alternative theory of medical battery involves conditional consent to the procedure. "There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a result of the doctor's violation of the condition. [Citation.]" (*Conte, supra*, 107 Cal.App.4th at 1269 [holding conditional consent did not apply in that case, as there was no evidence of an express condition imposed on the procedure by the patient].)

Defendants argue in their memorandum, without citation to any authority, that installing the Persona IQ implant was within the scope of Plaintiff's consent to the knee replacement and that its installation (without Plaintiff's knowledge or consent) was justified because "the intention was to monitor recovery." (MPA ISO Dem. p. 5, ll. 5-6.) Defendants have not cited any case law addressing whether the implantation of a "smart" electronic monitoring device requiring a separate incision into the bone is part of a knee replacement procedure or is a "substantially different treatment" from the treatment to which the patient consented or providing definitive guidance for the Court to make that determination as a matter of law based on the allegations of the complaint.

Therefore, on this record, the Court concludes that the issue of whether implanting the electronic patient monitoring device that would transmit data from Plaintiff's body was a substantial deviation from the procedure to which Plaintiff consented is one of fact. (*So v. Shin* (2013) 212 Cal.App.4th 652, 669 [reversing order sustaining demurrer to battery cause of action, stating "the nature of the contact between plaintiff and Dr. Shin, and whether that contact was within the scope of plaintiff's consent, is a factual question for a finder of fact to decide."].) (*See also Kaplan v. Mamelak* (2008) 162 Cal.App.4th 637, 645-647 [concluding the trial court erred in sustaining demurrers to plaintiff's battery cause of action when surgeon, stating that without guidance in published case law relevant to the procedures in question, the issue of whether a medical procedure is substantial different from the procedure the patient authorized " is a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer."].) The arguments made by defendants raise issues of fact which cannot be resolved on demurrer, particularly in the face of Plaintiff's allegations that the device is a separate electronic device from the knee replacement hardware that was implanted, that she was not informed that the electronic device with the ability to transmit data would be installed, and that she did not consent to having the Persona IQ implanted.

The demurrer to the third cause of action is **overruled**.

C. Invasion of Privacy (4th C/A)

Plaintiff's fourth cause of action alleges invasion of privacy in violation of the common law and Civil Code section 56.10, part of the California Medical Information Act ("CMIA"). Plaintiff alleges that she had a reasonable expectation of privacy in decisions regarding her body and a right to bodily autonomy. (Compl. ¶ 32.) She alleges the implantation of the Persona IQ device with the ability to

collect and transmit data from inside her body without prior disclosure to her and her consent violated her right to privacy and was an intentional intrusion into her private affairs and bodily integrity. (Compl. ¶¶ 33, 34.) She alleges the unauthorized implantation of the Persona IQ device constitutes a serious invasion of her autonomy and bodily privacy that would be highly offensive to a reasonable person. (Compl. ¶ 35.) She alleges that Dr. Wong and Golden State also violated the CMIA by obtaining, using and "attempt[ing] to disclose" Plaintiff's medical information without her written authorization in violation of Civil Code section 56.10(a).

1. Civil Code Section 56.10

Civil Code section 56.10 provides that a health care provider or contractor "shall not disclose medical information regarding a patient of the provider of health care or an enrollee or subscriber of a health care service plan without first obtaining an authorization, except as provided in subdivision (b) or (c)." (Civ. Code § 56.10(a).) Civil Code section 56.05(j) defines "medical information" as any individually identifiable information, in electronic or physical form, in possession of or derived from a provider of health care, health care service plan, pharmaceutical company, or contractor regarding a patient's medical history, mental health application information, reproductive or sexual health application information, mental or physical condition, or treatment. 'Individually identifiable' means that the medical information includes or contains any element of personal identifying information sufficient to allow identification of the individual, such as the patient's name, address, electronic mail address, telephone number, or social security number, or other information that, alone or in combination with other publicly available information, reveals the identity of the individual." (Civ. Code § 56.05(j)(1) [emphasis added].)

a. Medical Information

The invasion of privacy Plaintiff alleges is the implantation of the device with tracking capability that is "capable of collecting and transmitting data" from her body. She alleges the data that can be collected, stored, and transmitted is "individualized data related" to her physical condition and treatment (Compl. ¶ 37), but the data must also be "individually identifiable" to be "medical information" under the CMIA. The data must also include, or in combination with other publicly available information, "reveal[] the identity of the individual." (Civ. Code § 56.05(j)(1) [emphasis added].) Plaintiff does not allege sufficient facts to allege that the "data" that can be collected and transmitted is "medical information" as defined in the CMIA. Such an allegation is essential to allege with specificity a statutory claim. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) If the data is not "medical information" as defined in Civil Code section 56.05(j)(1), there is no violation of the CMIA.

b. Disclosure

In addition, Plaintiff alleges only that the implanted device is capable of transmitting data, but she does not allege that any data was actually transmitted or disclosed to anyone. Cases construing the CMIA hold that to qualify as a breach of the provisions of this statute, the medical information must have actually been read by an unauthorized person. (*Sutter Health v. Superior Court* (2014) 227 Cal.App.4th 1555, 1557.) (*See also Regents of University of California v. Superior Court* (2013) 220 Cal.App.4th 549, 570 [holding demurrer to CMIA cause of action should have been sustained, where thief stole encrypted hard drive with patient information, and the plaintiff could not "allege her

medical records were, in fact, viewed by an unauthorized individual.".) As the Court stated in *Sutter Health*, "without an actual confidentiality breach, a health care provider has not violated section 56.101 and therefore does not invoke the remedy provided in section 56.36. . . . [¶] [S]ection 56.36 provides remedies when a health care provider has 'negligently released confidential information or records concerning [the plaintiff] in violation of this part . . . ' (§ 56.36, subd. (b), italics added.) For the reasons given, there is no 'negligent[] release[] . . . in violation of [the Confidentiality Act],' if there is no actual breach of confidentiality. Because Sutter Health has not negligently released information or records in violation of the Confidentiality Act, there is no remedy." (*Id.* at 1555, 1558.)

This interpretation of the CMIA determination is also supported by *Vigil v. Muir Medical Group IPA, Inc.* (2022) 84 Cal.App.5th 197. In *Vigil*, a patient filed a class action lawsuit against an independent medical association ("IPA"), a medical group of doctors whose former employee stole a spreadsheet listing approximately 5,400 patients with certain personal and medical information. (*Id.* at 205-206.) The Court of Appeal affirmed an order which denied class certification in part because an individualized determination would have to be made for each class member as to whether their specific personal and medical information had actually been viewed in order for that class member to have a claim for breach of confidentiality under CMIA. (*Id.* at 213 ["Based on the statute's plain language, we agree with *Sutter Health* that a breach of confidentiality under the CMIA requires a showing that an unauthorized party viewed the confidential information."].)

Regents, Sutter Health and *Vigil* addressed Civil Code sections 56.101 and 56.36(b), which address the negligent release of confidential patient information and the remedies provided for that violation, rather than Civil Code sections 56.10(a) and 56.36(c)(1) which address violation and remedies based on negligent disclosure of confidential patient information. Nevertheless, the reasoning of the decisions supports that a breach of confidentiality based on negligent disclosure of medical information also requires a showing a third party viewed the information. As the cases explain, the injury to the plaintiff the CMIA is intended to address is the breach of confidentiality which, based on the meaning of the term confidentiality, only occurs if someone has actually viewed the medical information. (*Vigil, supra*, 84 Cal.App.5th at 213 ["Thus, under the ordinary meaning of 'confidential,' the confidential nature of information is not breached unless the information is reviewed by unauthorized parties. This construction is consistent with the purpose of the CMIA to protect patients' privacy."]; *Sutter Health, supra*, 227 Cal.App.4th at 1557 ["No breach of confidentiality takes place until an unauthorized person views the medical information. It is the medical information, not the physical record (whether in electronic, paper, or other form), that is the focus of the confidentiality Act. While there is certainly a connection between the information and its physical form, possession of the physical form without actually viewing the information does not offend the basic public policy advanced by the Confidentiality Act."].)

Statutory causes of action must be pleaded with particularity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) Plaintiff alleges defendants "attempted to disclose" her medical information, not that they disclosed her medical information which is what Civil Code section 56.10 prohibits. (Compl. ¶ 38 [emphasis added].) Plaintiff alleges that Zimmer personnel were involved in the surgical procedure, but she does not allege that they were not authorized to be involved, only that she did not authorize the implantation of the Persona IQ device. (Compl. ¶¶ 13, 31.) The complaint does not allege that Dr. Wong and Golden State violated the CMIA by disclosing

Plaintiff's medical information to Zimmer, as the manufacturer or distributor of the medical devices being implanted during the surgery, and she expressly alleges Zimmer personnel were "assisting with the surgical procedure." (Compl. ¶ 24 [incorporated into fourth cause of action by Compl. ¶ 30].) Based on the authorities cited in defendants' reply, it is not clear that such disclosure would violate the CMIA and/or that Plaintiff did not consent to Zimmer being involved in the knee replacement surgery and obtaining her medical information as a result based on its device was being implanted in her body. (Civ. Code § 56.10(c); 45 C.F.R. 164.506(c)(2) [disclosure "for treatment activities of a healthcare provider"].)

Rather, Plaintiff alleges after the surgery, Zimmer personnel contacted her to activate the tracking functionality of the device. (Compl. ¶¶ 13, 31.) By implication she declined, and she does not allege that the tracking was actually activated or that any of her medical information from the electronic monitor was disclosed to Zimmer. (Compl. ¶¶ 13, 31.) Reading the allegations of the complaint as a whole, the implication of the allegations is that the device was not activated and that her medical information was not actually disclosed to Zimmer, based on the more specific allegation in paragraph 38 of the complaint that defendants "attempted" to disclose her medical information. (Compl. ¶ 38.) Nevertheless, if Plaintiff can truthfully allege facts showing the unauthorized disclosure of her medical information to Zimmer or someone else, she may be able to allege sufficient facts to state this cause of action.

Without additional facts or clarification of the facts alleged, the allegations are not sufficient to allege a violation of Civil Code section 56.10(a) based on unauthorized disclosure of Plaintiff's medical information.

2. Common Law Intrusion

"A privacy violation based on the common law tort of intrusion has two elements. First, the defendant must intentionally intrude into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy. Second, the intrusion must occur in a manner highly offensive to a reasonable person." (*Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 286.) The California Supreme Court in *Hernandez* explained, "As to the first element of the common law tort, the defendant must have 'penetrated some zone of physical or sensory privacy . . . or obtained unwanted access to data' by electronic or other covert means, in violation of the law or social norms. [Citations omitted.]" (*Id.* at 286.) "The second common law element essentially involves a 'policy' determination as to whether the alleged intrusion is 'highly offensive' under the particular circumstances. [Citation omitted.] Relevant factors include the degree and setting of the intrusion, and the intruder's motives and objectives. [Citations omitted.] Even in cases involving the use of photographic and electronic recording devices, which can raise difficult questions about covert surveillance, 'California tort law provides no bright line on ["offensiveness"]; each case must be taken on its facts.' [Citation omitted.]" (*Id.* at 287.) (See also *Sanders v. American Broadcasting Companies* (1999) 20 Cal.4th 907, 914, 916 cited by Plaintiff.)

Defendants cite *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, which addressed a claim for violation of the right to privacy under the California Constitution, not the common law tort of intrusion, though the standards set for invasion of the right to privacy under the California Constitution has standards similar to common law intrusion. (*Id.* at 27.) "[A] plaintiff alleging an

invasion of privacy in violation of the state constitutional right to privacy must establish each of the following: (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy. [¶] Whether a legally recognized privacy interest is present in a given case is a question of law to be decided by the court. [Citation omitted.] Whether plaintiff has a reasonable expectation of privacy in the circumstances and whether defendant's conduct constitutes a serious invasion of privacy are mixed questions of law and fact. If the undisputed material facts show no reasonable expectation of privacy or an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law." (*Id.* at 39-40 [emphasis added].)

The facts in which *Hernandez* and other decisions on common law intrusion arise are distinguishable from those alleged to support the intrusion claim here. In *Hernandez*, summary judgment was held properly granted to an employer who had installed a hidden camera in a shared office because the employer had learned of after-hours access to the internet on a computer in the office. The employer ran a home for abused children, the internet access involved accessing pornography, and employees were not informed the hidden camera had been installed. The Court held the first element was satisfied, but not the second element of a highly offensive intrusion and serious invasion of privacy under the circumstances. Notably, actual surveillance occurred in that case; the camera recorded employees in their workspace in which they had an expectation of privacy.

Similarly, in *Sanders* cited by Plaintiff, a television reporter covertly videotaped the plaintiff's conversations with a hidden camera, which was held to support a common law intrusion claim. In *Hill*, the California Supreme Court reversed a permanent injunction banning a national collegiate association's drug-testing program which disclosed the results of athletes' urine screenings for banned drugs, concluding there was no serious invasion of the right to privacy since athletes were voluntarily participating in athletic programs, and the information was being gathered for the legitimate purpose of protecting the integrity of competition and the health and safety of athletes.

Plaintiff alleges there was a physical intrusion into a zone of privacy (her body) by the implantation of an electronic device capable of transmitting data from inside Plaintiff's body. While the implantation of the device capable of providing medical data may arguably meet the first element of the intrusion claim, the allegations of the complaint, in light of the case law on intrusion, do not meet the second element. Plaintiff has not alleged that the Persona IQ was ever activated or that any information from her body was ever captured by the device or transmitted, unlike the cases cited above in which hidden devices were installed, and information was recorded and viewed by persons outside the plaintiff's zone of privacy.

Plaintiff has not cited any case where the mere existence of a hidden monitoring, eavesdropping, or video device that is not activated or does not result in the capture of private information has been held enough to state a claim for common law intrusion. The general demurrer to the fourth cause of action is therefore **sustained, with leave to amend**, as this is the first time the Court has reviewed the sufficiency of the allegations of the complaint, and Plaintiff may be able to allege additional facts to support the claims.

In granting leave to amend, the Court notes that the fourth cause of action in effect alleges under one heading **two distinct causes of action**, one based on a statutory violation with specific elements

supplied by the statute, and one under the common law with different elements set forth in the case law. If Plaintiff files an amended complaint alleging these claims, the claims should be pleaded in separate causes of action. (See Cal. R. Ct., Rule 2.112.)

14. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: ZIMMER, INC.

TENTATIVE RULING:

Before the Court is a demurrer to plaintiff's complaint by defendant Zimmer, Inc., erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. For the reasons set forth, the Court rules as follows: (a) demurrer to second cause of action – **overruled as moot**; (b) demurrer to third cause of action – **overruled**; and (c) demurrer to fourth cause of action – **sustained, with leave to amend**.

Background

Plaintiff alleges that defendant Zimmer Biomet supplied medical devices and hardware to hospitals and surgeons. (Compl. ¶ 4.) She alleges Zimmer Biomet Corporate Services "operates as a corporate services entity for the Zimmer Biomet family of companies," and provided medical devices and hardware, including implants, to hospitals and surgeons. (Compl. ¶ 5.) Though originally sued as two entities by the names set forth, defendant Zimmer, Inc. has appeared in the action as the true defendant, asserting it was erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. The Court describes the relevant allegations of the complaint as against "Zimmer."

Plaintiff alleges she underwent a total knee replacement performed by defendant Wendy Wong, M.D. at Golden State Orthopedics in Walnut Creek. (Compl. ¶ 11.) She alleges that in addition to placing a Zimmer knee replacement implant, Dr. Wong placed a Zimmer Persona IQ implant without her consent. (Compl. ¶ 11.) Plaintiff further alleges as to Zimmer that after the surgery, she was contacted by a Zimmer representative who told her that "her surgeon had enrolled her in Mymobility," which she alleges is Zimmer's patient care app, and that during the surgery, Dr. Wong had implanted an electronic device with a battery and sensors for use with the app. (Compl. ¶ 13.)

Plaintiff alleges she has been harmed by the implantation of the Persona IQ device, that she has suffered injury to her physical and mental health, as well as pain and suffering. (Compl. ¶¶ 14, 15.) As relevant to the Zimmer demurrer, Plaintiff alleges causes of action against Zimmer for failure to obtain informed consent (2nd C/A), medical battery (3rd C/A), and invasion of privacy under the common law and Civil Code section 56.10 (4th C/A). Plaintiff has dismissed Zimmer from the failure to obtain informed consent cause of action (2nd C/A). (See Req. for Dism. filed 2/11/2026.)

Standards Governing Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (See also *City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App. 4th 116, 123.) The Court gives the complaint "a reasonable

interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.) Further, "[i]f the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

The Court is limited to consideration of the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Questions of fact cannot be decided by the Court on demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 ["In considering the merits of a demurrer, 'the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation.]' [Citation omitted.]"].)

Generally, a complaint is sufficient if it pleads "ultimate" facts. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) "Ultimately, the complaint is sufficient if 'the adversary has been fairly apprised of the factual basis of the claim against him.' [Citations, internal quotations omitted.]" (*Randall v. Ditech Financial, LLC* (2018) 23 Cal.App.5th 804, 810.) Statutory causes of action, however, must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Zimmer cites *C & H Foods Co. v. Hartford Ins. Co.* (1984) 163 Cal.App.3d 1055, 1062 for the proposition that facts not alleged in the complaint "are presumed not to exist." The statement was made in the context of the Court's review of an order sustaining a demurrer without leave to amend, after the plaintiffs had filed an original complaint, a first amended complaint, and a second amended complaint. (*Id.* at 1060.) The Court also stated that sustaining a demurrer without leave to amend "is not an abuse of discretion if it appears from the complaint that under applicable substantive law there is no reasonable probability that the defect can be cured by amendment. [Citation omitted.]" (*Id.* at 1062 [emphasis added].) In subsequent decisions, the California Supreme Court has stated the rule on demurrer somewhat differently: "If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted." [Citation omitted.]" (*Quelimane, supra*, 19 Cal. 4th at 39 [citing *Blank v. Kirwan, supra*, 39 Cal. 3d at 318].) The Court follows the California Supreme Court's subsequent guidance.

Analysis

Zimmer filed general demurrers to the second, third, and fourth causes of action for failure to allege facts sufficient to state a cause of action. (Code Civ. Proc. § 430.10(e).) The dismissal of Zimmer from the second cause of action renders the demurrer to that cause of action moot. Plaintiff opposes the demurrers to the other causes of action.

A. Medical Battery (3rd C/A)

A plaintiff states a cause of action for medical battery by alleging the plaintiff was a patient who consented to one type of medical treatment or procedure, and the doctor performed a "substantially different treatment for which consent was not obtained." (*Cobbs v. Grant* (1972) 8 Cal.3d 229, 239.) In that circumstance, there is a "clear case of battery." (*Id.*) "When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate

intent to deviate from the consent given is present." (*Id.* at 240.) (*See also Rains v. Superior Court* (1984) 150 Cal.App.3d 933, 938 ["A battery is a violation of an individual's interest in freedom from intentional unlawful, harmful or offensive unconsented contacts with his or her person."]; *Piedra v. Dugan* (2004) 123 Cal.App.4th 1438, 1495 [stating elements of a claim for civil battery in case against a physician in which the Court affirmed a nonsuit on battery claim in favor of doctor, but also found any error was not prejudicial].)

The Court in *Conte, supra*, 107 Cal.App.4th 1260 relied on by Defendants explained, "A typical medical battery case is where a patient has consented to a particular treatment, but the doctor performs a treatment that goes beyond the consent. 'When an action is based upon the theory of surgery beyond consent, the gist of such action is the unwarranted exceeding of the consent. This is a theory of technical battery.' [Citation omitted.] . . . [¶] A doctor may not act beyond the patient's authorization except in life- or health-threatening situations." (*Id.* at 1267, 1268 [emphasis added].) "The law presumes that '[w]hen the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present.' [Citation omitted.]" (*Dennis v. Southard* (2009) 174 Cal.App.4th 540, 544.)

An alternative theory of medical battery involves conditional consent to the procedure. "There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a result of the doctor's violation of the condition. [Citation.]" (*Conte v. Girard Orthopedic Surgeons Medical Group, Inc.* (2003) 107 Cal.App.4th 1260, 1269 [holding conditional consent did not apply in that case, as there was no evidence of an express condition imposed on the procedure by the patient].)

Zimmer contends that *Cobbs* and *Conte* both involved a doctor performing a procedure that went beyond that to which the plaintiff had consented or that was substantially different from the procedure to which consent had been given. Zimmer contends that as a medical device provider, it "cannot be held liable for the practice of medicine." The case Zimmer cites for that proposition, *Glennon v. Allergen, Inc.* (2016) 247 Cal.App.4th 1, did not involve a claim for medical battery against a medical device provider. It held that the trial court properly sustained a demurrer to a complaint for negligence against the medical device provider, without leave to amend, on a claim by the plaintiff that the device provider did not adequately train physicians on the use of its medical device, because the claim was preempted by federal law. (*Id.* at 4-5, 19 ["[I]f Allergan's training is inadequate, the matter is best addressed under the FDA's jurisdiction."].) The Court's statement that "medical device manufacturers are not responsible for the practice of medicine" must be read in the context of the facts and claim asserted against the manufacturer in that case, and the law cited by the Court that medical device manufacturers do not have a duty to train physicians on the use of their devices, though if they do provide training and do so negligently, they may be liable for harm caused by the training undertaken negligently. (*Id.* at 20, 21.) The *Glennon* decision does not hold that a medical device manufacturer cannot be held liable for battery because it is not practicing medicine. "It is axiomatic that language in a judicial opinion is to be understood in accordance with the facts and issues before the court. An opinion is not authority for propositions not considered. [Citations omitted.]" (*Chevron U.S.A., Inc. v. Workers' Comp. Appeals Bd.* (1999) 19 Cal.4th 1182, 1195.) (*See also City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1319 ["Cases are

not authority for a proposition not considered."].)

Plaintiff alleges that Zimmer personnel "assisted" in the surgical procedure performed by Plaintiff and that Zimmer's "participation in the procedure materially contributed to the unauthorized physical intrusion that exceeded the scope of Plaintiff's consent." (Compl. ¶ 24.) She alleges "Defendants" implanted the Persona IQ device into her knee without disclosure or her consent. (Compl. ¶ 24.) She alleges "Defendants' " actions "involved an unauthorized intrusion into her body, and that Zimmer "aided and abetted the battery committed" by the surgeon "by facilitating the implantation of the unauthorized device." (Compl. ¶¶ 25, 26.)

The Court is required to accept as true well-pled factual allegations of the complaint, "however improbable they may be." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, 151.) Plaintiff alleges that "Defendants," which would include Zimmer, implanted the Persona IQ device in her body without her consent, and that the actions of "Defendants" concerned unauthorized intrusion into her body by implanting that device. Plaintiff alleges Zimmer aided and abetted Dr. Wong's commission of a medical battery against her, and that the conduct of the "Defendants" was intentional. (Compl. ¶ 27.) A person may be liable for aiding and abetting another's intentional tort, including battery, where the person " 'knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act . . . ' [Citations omitted.]" (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 879 [quoting *Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1144].) If the complaint states a cause of action under any theory, that aspect of the complaint survives a demurrer. (*Quelimane, supra*, 19 Cal.4th at 38.)

The complaint alleges facts, accepted as true on demurrer, that are sufficient to state a claim for medical battery and for aiding and abetting another's medical battery of Plaintiff, "however improbable they may be." (*Del E. Webb Corp., supra*, 123 Cal.App.3d at 604.) The general demurrer to the third cause of action is **overruled**.

B. Invasion of Privacy (4th C/A)

In a single cause of action, Plaintiff's fourth cause of action alleges invasion of privacy in violation of the common law and Civil Code section 56.10, part of the California Medical Information Act ("CMIA"). The fourth cause of action is explicitly alleged against Zimmer, contrary to Plaintiff's argument in the opposition that the Civil Code section 56.10 claim is not alleged against Zimmer. (*Compare* Opp. p. 6, ll. 19-25 to Compl. p. 6, ll. 18-21 and ¶¶ 33, 34, and 42.) To the extent Plaintiff contends that she did not intend to assert the CMIA violation against Zimmer, that position highlights the need for amendment to separately plead the cause of action for common law invasion of privacy and violation of section 56.10, as discussed further below.

Plaintiff alleges that she had a reasonable expectation of privacy in decisions regarding her body and a right to bodily autonomy. (Compl. ¶ 32.) She alleges that Zimmer's "actions in facilitating" implantation of the Persona IQ device with its "tracking functionality" without prior disclosure "contributed" to the violation of her bodily autonomy and privacy rights. (Compl. ¶ 33.) Plaintiff alleges that "Defendants' conduct, implanting a foreign electronic device" with transmitting capability without her consent was an intentional intrusion into her privacy rights and bodily integrity. (Compl. ¶ 34.)

She alleges the unauthorized implantation of the Persona IQ device constitutes a serious invasion of her autonomy and bodily privacy that would be highly offensive to a reasonable person. (Compl. ¶ 35.) Most of the other allegations in this cause of action pertain to Dr. Wong and Golden State Orthopedics. She alleges that Dr. Wong and Golden State also violated the CMIA by obtaining, using and "attempt[ing] to disclose" Plaintiff's medical information without her written authorization in violation of Civil Code section 56.10(a). Plaintiff makes one additional allegation specific to Zimmer, that Zimmer's conduct "substantially assisted and encouraged" the wrongful conduct of Dr. Wong and Golden State Orthopedics by its assistance in implanting the Persona IQ device and "communicating directly with Plaintiff" about the device and its functions. (Compl. ¶ 42.)

3. Civil Code Section 56.10

Civil Code section 56.10 provides that a health care provider or contractor "shall not disclose medical information regarding a patient of the provider of health care or an enrollee or subscriber of a health care service plan without first obtaining an authorization, except as provided in subdivision (b) or (c)." (Civ. Code § 56.10(a).) Civil Code section 56.05(j) defines "medical information" as any individually identifiable information, in electronic or physical form, in possession of or derived from a provider of health care, health care service plan, pharmaceutical company, or contractor regarding a patient's medical history, mental health application information, reproductive or sexual health application information, mental or physical condition, or treatment. 'Individually identifiable' means that the medical information includes or contains any element of personal identifying information sufficient to allow identification of the individual, such as the patient's name, address, electronic mail address, telephone number, or social security number, or other information that, alone or in combination with other publicly available information, reveals the identity of the individual." (Civ. Code § 56.05(j)(1) [emphasis added].)

a. Medical Information

The invasion of privacy Plaintiff alleges is the implantation of the device with tracking capability and that is "capable of collecting and transmitting data" from her body. She alleges the data that can be collected, stored, and transmitted is "individualized data related" to her physical condition and treatment (Compl. ¶ 37), but the data must also be "individually identifiable" to be "medical information" under the CMIA. The data must also include, or in combination with other publicly available information, "reveal[] the identity of the individual." (Civ. Code § 56.05(j)(1).) Plaintiff does not allege sufficient facts to allege that the "data" that can be collected and transmitted is "medical information" as defined in the CMIA. Such an allegation is essential to allege with specificity a statutory claim. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) If the data is not "medical information" as defined in Civil Code section 56.05(j)(1), there can be no violation.

b. Disclosure

In addition, Plaintiff alleges only that the implanted device is capable of transmitting data, but she does not allege that any data was actually transmitted or disclosed to anyone. Cases construing the CMIA hold that to qualify as a breach of the provisions of this statute, the medical information must have actually been read by an unauthorized person. (*Sutter Health v. Superior Court* (2014) 227 Cal.App.4th 1555, 1557.) (See also *Regents of University of California v. Superior Court* (2013) 220

Cal.App.4th 549, 570 [holding demurrer to CMIA cause of action should have been sustained, where thief stole encrypted hard drive with patient information, and the plaintiff could not "allege her medical records were, in fact, viewed by an unauthorized individual."].) As the Court stated in *Sutter Health*, "without an actual confidentiality breach, a health care provider has not violated section 56.101 and therefore does not invoke the remedy provided in section 56.36. . . . [¶] [S]ection 56.36 provides remedies when a health care provider has 'negligently released confidential information or records concerning [the plaintiff] in violation of this part' (§ 56.36, subd. (b), italics added.) For the reasons given, there is no 'negligent[] release[] . . . in violation of [the Confidentiality Act],' if there is no actual breach of confidentiality. Because Sutter Health has not negligently released information or records in violation of the Confidentiality Act, there is no remedy." (*Id.* at 1555, 1558.)

This interpretation of the CMIA determination is also supported by *Vigil v. Muir Medical Group IPA, Inc.* (2022) 84 Cal.App.5th 197. In *Vigil*, a patient filed a class action lawsuit against an independent medical association ("IPA"), a medical group of doctors whose former employee stole a spreadsheet listing approximately 5,400 patients with certain personal and medical information. (*Id.* at 205-206.) The Court of Appeal affirmed an order which denied class certification in part because an individualized determination would have to be made for each class member as to whether their specific personal and medical information had actually been viewed in order for that class member to have a claim for breach of confidentiality under CMIA. (*Id.* at 213 ["Based on the statute's plain language, we agree with *Sutter Health* that a breach of confidentiality under the CMIA requires a showing that an unauthorized party viewed the confidential information."].)

Regents, Sutter Health and *Vigil* addressed Civil Code sections 56.101 and 56.36(b), which address the negligent release of confidential patient information and the remedies provided for that violation, rather than Civil Code sections 56.10(a) and 56.36(c)(1) which address violation and remedies based on negligent disclosure of confidential patient information. Nevertheless, the reasoning of the decisions supports that a breach of confidentiality based on negligent disclosure also requires a showing a third party viewed the information. As the cases explain, the injury to the plaintiff the CMIA is intended to address is the breach of confidentiality which, based on the meaning of the term confidentiality, only occurs if someone has actually viewed the medical information. (*Vigil, supra*, 84 Cal.App.5th at 213 ["Thus, under the ordinary meaning of 'confidential,' the confidential nature of information is not breached unless the information is reviewed by unauthorized parties. This construction is consistent with the purpose of the CMIA to protect patients' privacy."]; *Sutter Health, supra*, 227 Cal.App.4th at 1557 ["No breach of confidentiality takes place until an unauthorized person views the medical information. It is the medical information, not the physical record (whether in electronic, paper, or other form), that is the focus of the confidentiality Act. While there is certainly a connection between the information and its physical form, possession of the physical form without actually viewing the information does not offend the basic public policy advanced by the Confidentiality Act."].)

Plaintiff alleges there was a physical intrusion into a zone of privacy (her body) by the implantation of an electronic device capable of transmitting data from inside Plaintiff's body. While the implantation of the device capable of providing medical data may arguably meet the first element of the common law intrusion claim, the allegations of the complaint, in light of the case law on intrusion, do not meet the second element. Plaintiff has not alleged that the Persona IQ was ever activated or that any

information from her body was ever captured by the device or transmitted, unlike the cases cited above in which hidden devices were installed, and information was recorded and viewed by persons outside the plaintiff's zone of privacy.

Plaintiff has not cited any case where the mere existence of a hidden monitoring, eavesdropping, or video device that is not activated or does not result in the capture of private information has been held enough to state a claim for common law intrusion. The general demurrer to the fourth cause of action is therefore **sustained, with leave to amend**, as this is the first time the Court has reviewed the sufficiency of the allegations of the complaint, and Plaintiff may be able to allege additional facts to support the claims.

In granting leave to amend, the Court notes that the fourth cause of action in effect alleges under one heading **two distinct causes of action**, one based on a statutory violation with specific elements supplied by the statute, and one under the common law with different elements set forth in the case law. If Plaintiff files an amended complaint alleging these claims, the claims should be pleaded in separate causes of action. (See Cal. R. Ct., Rule 2.112.)

15. 9:00 AM CASE NUMBER: C25-02680

CASE NAME: NATHAN STEINLE VS. PREMDIP DHOOT

**HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR
ISSUANCE OF WRIT RE: PREMDIP S. DHOOT, HD 2670 WALNUT BLVD MEMBER, LLC, AND HD TALUS
MEMBER, LLC**

FILED BY: DHOOT, PREMDIP S

TENTATIVE RULING:

Before the Court are three applications by plaintiff, Nathan Steinle, to attach property owned by LLC defendants, HD 2670 Walnut Blvd Member, LLC and HD Talus Member, LLC, as well as property owned by the individual defendant, Premdip S. Dhoot.

Background

This case arises from a loan by plaintiff to permit defendants to develop and sell real property. (See Declaration of Nathan Steinle in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter "Steinle Decl.," ¶12.) In consideration of the loan, LLC defendants executed a promissory note on August 24, 2022 in the principal amount of \$1,300,000, to be re-paid, along with an additional \$314,136.97 "Lender's Return," by January 1, 2024 ("Maturity Date"). (*Id.*, Ex. 1.) Individual defendant, Dhoot, guaranteed the note. (Steinle Decl., Ex. 2.)

Plaintiff contends that defendants refuse to comply with their repayment obligations and intend to sell the underlying properties being developed. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (Steinle Decl., Ex. 3.) In November 2025, plaintiff filed the present application for right to attach order and order for writ of attachment.

With respect to the LLC defendants, plaintiff seeks to attach 13 real properties and the following assets held in the LLCs' names: "real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit

boxes, accounts receivable, and general intangibles.” With respect to Dhoot, plaintiff seeks to attach, “[a]ll real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles” in his name.

The applications are opposed by defendants, who argue plaintiff has failed to meet his burden to establish probable validity of the claim and has not shown a risk of irreparable harm. Defendants further contend the value of the property sought to be attached exceeds the amount of plaintiff’s claim. Defendants generally agree with the background provided by plaintiff (the amount of money loaned, the date loaned, and the purpose), though the Court observes that the Declaration of Premdip S. Dhoot is inconsistent with its own exhibits.

Defendants argue that parties agreed to an oral modification of the Maturity Date after the project suffered significant schedule delays and setbacks. The alleged new date would be “after the Project was finished and Defendant was able to list the Property for sale.” (Declaration of Premdip S. Dhoot in Support of Opposition, hereinafter “Dhoot Decl.,” ¶ 8.) Accordingly, defendants argue the alleged debt is not yet due, but do not give a specific date. Based on such purported modification, Dhoot argues there was no default on the promissory note that would trigger his liability on the personal guaranty.

Exemptions

A defendant who opposes a right to attach order must give notice of his objection, “accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised.” (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Here, Dhoot claims his personal property is exempt because it is not among the items listed in Code of Civil Procedure §487.010, subdivision (c) and amounts to less than “\$8,725 in the aggregate.” He also represents that he holds no title to any items listed in Code of Civil Procedure §487.010, subdivision (c).

Plaintiff has not opposed the claim of exemption. The right to attachment of property owned by a natural person requires an adequate description. “Personal property” is insufficiently specific, as set forth in the opposition. Accordingly, all references to “personal property” shall be omitted from the description of property with respect to Dhoot.

Standard

Attachment is a pre-judgment creditor’s remedy. Generally, an order of attachment may be issued only in an action for a claim of money that is based upon an express or implied contract where the total amount of such claim is a fixed or readily ascertainable amount not less than \$500. (Code Civ. Proc., § 483.010, subd. (a).) A plaintiff may obtain a right to attach if the plaintiff establishes the probable validity of plaintiff’s claim. (Code Civ. Proc. § 484.090, subd. (a)(2).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc. § 481.190; see also *Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120; see *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The Court must also find that the attachment is not sought for a purpose other than the recovery on the claim upon which the request for attachment is based and that the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. § 484.090.)

Discussion

The applications and supporting declarations adequately support the amount claimed and make all required representations to procure attachment. Plaintiff successfully demonstrates probable validity of his claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id.* at (a)(3)-(4).)

Probability of Prevailing

Plaintiff has demonstrated a probability of prevailing on his breach of contract claim. Defendants have raised a modification defense that involves an adjustment to the due date. The defense appears to be insufficient for four reasons. First, while a written contract may be modified by oral agreement in certain circumstances (including execution and where there is new consideration), there is insufficient evidence of such circumstances here. (Civ. Code, § 1698 (b)-(c).) Second, with respect to the purported modification, defendants do not address the statute of frauds (Civil Code, §1624), which would bar oral modification. Third, while the promissory note is silent as to how the lender would extend the payment deadline (see Steinle Decl., Ex. 1, §3), the guaranty, requires modifications of the underlying documents to be in writing (Steinle Decl., Ex. 2, ¶4.1). Finally, and perhaps most importantly, plaintiff's reply declaration denies that parties adjusted the Maturity Date.

Irreparable Harm

Defendants contend plaintiff fails to show "irreparable harm." Code of Civil Procedure, § 485.010 describes the "great or irreparable injury" prerequisite to obtaining attachment. The showing is satisfied where there is a danger that property may become unavailable. Such conditions exist where "[u]nder the circumstances of the case, it may be inferred that there is a danger that the property sought to be attached would be concealed, substantially impaired in value, or otherwise made unavailable to levy if issuance of the order were delayed until the matter could be heard on notice." (*Id.* at subd. (b)(1).)

This standard is satisfied here. While plaintiff presents no specific evidence that defendants intend to conceal funds or deprive plaintiff of an available source of recovery, defendants confirm in the opposition papers that some project properties have already been sold and the inferences permitted by the above-cited statute are sufficient.

Value of the Property Sought to be Attached

With respect to defendants' argument that they do not hold title to certain properties listed in the applications, and that the value of the properties sought to be attached exceeds the debt, their concerns are unfounded. Any property not owned by a particular defendant cannot be attached. Further, assuming such attachment leads to a lien, once the debt is satisfied, no further recovery would be warranted.

Undertaking / Conclusion

An undertaking is required prior to the issuance of a writ of attachment in order to pay the defendant for any wrongful attachment. (Code Civ. Proc., § 489.210.) Plaintiff does not address the amount of the undertaking, but defendants argue the amount should be equal to the amount of the claimed debt.

Subject to the plaintiff posting an undertaking in the amount of \$1,852,410.94, and subject to the striking of "personal property" in Attachment 9 to the Application with respect to Dhoot, as identified above, the applications are **granted**. Plaintiff, as the prevailing party, shall lodge with the

Court an appropriate order reflecting this ruling in accordance with the Local Civil Rules.

16. 9:00 AM CASE NUMBER: MSC21-01827
CASE NAME: FROES VS. ROC FUNDING GROUP
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: ROC FUNDING GROUP,LLC A NEW YORK LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The hearing on this matter is **vacated**. This matter is pending an appeal.

17. 9:00 AM CASE NUMBER: N25-2145
CASE NAME: CLAIM OF:TERRANCE WILEYTERRANCE WILEY
***HEARING ON MINOR'S COMPROMISE**

FILED BY:

Summary

Petitioner Darron Alonzo Thompson's Petition for Approval of Compromise of Minor Terrance Malik Wiley ("Minor") Claim, filed on October 28, 2025, is **granted**, as set forth below. No appearance is required at the hearing on February 25, 2026.

Background

Petitioner Darron Alonzo Thompson, parent and guardian ad litem for his son, Minor, filed the Petition through counsel Mahvar Roshani, Esq., to compromise the claim that Minor had against Bryan Ernest Keding related to an accident that occurred on August 21, 2023 in Pittsburg, California. In that accident, Minor sustained injuries including to his spine and lower back. Petitioner represents that Minor has received treatment at Kaiser Hospital and a Miller Chiropractic Injury Center. He has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$13,000, of which \$8,351 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$4,648.15 represents a negotiated deduction from the settlement, which is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on October 28, 2025. No appearance is necessary at the February 25, 2026 hearing.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY ORDERS: 1) DEEMING ADMITTED TRUTH OF FACTS AS TO**

**PLAINTIFF LYNETTA WESTBROOK, INDIVIDUALLY AND 2) IMPOSING MONETARY SANCTIONS
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CENTER LLC**

TENTATIVE RULING:

Summary

This tentative ruling applies to lines 18, 19 and 1720 which are the three discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center (“Defendant”) against Plaintiff Lynetta Westbrook (“Plaintiff”) calendared for hearing on February 25, 2026. Because no timely oppositions to each of these motions were filed with the Court, each of these motions are **granted** in their entirety. No appearance is required on February 25, 2026.

Background

Defendant filed the following discovery motions:

1. September 8, 2025 Motion for Orders Demming Admitted Truth of Facts As to Plaintiff Lynetta Westbrook, Individually, and Imposing Monetary Sanctions \$1,772.95
2. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts as to Plaintiff Lynetta Westbrook, as Successor in Interest to Alex Pollard (Deceased) and Imposing Monetary Sanctions (\$1,772.95)
3. September 8, 2025 Motion to Compel Production of Documents and Things (Set Two) against Plaintiff individually and for sanctions \$1,522.95

These three motions were supported by Notice, Memoranda of Points and Authorities, Separate Statement (where required for the Motion to Compel Further Responses), Declarations of Counsel Valerie A. Kraml, and proposed orders lodged with the Court. The proofs of service for each motion evidence service of each motion on September 16, 2025 by e-mail to Plaintiff’s Counsel of Record, Dawn M. Smith. No timely responses were received from Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” Nine court days before the hearing is February 3, 2026. No timely opposition was filed. Defendant’s counsel filed a Non-Receipt of Opposition to all three motions.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.];

Moreover, California courts recognize that a party’s failure to file opposition supports treating the

motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiff’s failure to timely oppose Defendant’s Motions is a deemed to be her consent to the granting of all three motions.

Ruling

The Court grants the following motions and their respective sanctions:

1. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts As to Plaintiff Lynetta Westbrook, Individually, and Imposing Monetary Sanctions \$1,772.95
2. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts as to Plaintiff Lynetta Westbrook, as Successor in Interest to Alex Pollard (Deceased) and Imposing Monetary Sanctions (\$1,772.95)
3. September 8, 2025 Motion to Compel Production of Documents and Things (Set Two) against Plaintiff individually and for sanctions \$1,522.95
4. Plaintiff shall pay the foregoing sanctions to Defendant’s Counsel no later than ten (10) days from the date of this hearing.
5. The Court will execute the three proposed orders granting each motion lodged on September 16, 2026 and November 17, 2026. No appearance is required on February 25, 2026.

19. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY ORDERS: 1) DEEMING ADMITTED TRUTH OF FACTS AS TO PLAINTIFF LYNETTA WESTBROOK, AS SUCCESSOR IN INTEREST TO ALEX POLLARD, DECEASED AND 2) IMPOSING MONETARY SANCTIONS**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 18.

20. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND THINGS (SET TWO) AS AGAINST PLAINTIFF, INDIVIDUALLY, AND FOR MONETARY SANCTIONS**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 18.